

ONTARIO

SUPERIOR COURT OF JUSTICE

BETWEEN:

MARJORY ARLENE CARTNER and
DAVID CARTNER

Plaintiffs

- and -

THE CORPORATION OF THE CITY OF
BURLINGTON, FENG FENG WANG
and YING JIA HUANG

Defendants

R. Hooper, for the Plaintiffs

C. Carter, for The Corporation of the
City of Burlington

J. Lee for Feng Feng Wang and Ying Jia Huang

HEARD: October 16-19, 22-25, 30,
November 1, 2, 5 and 6, 2007

REASONS FOR JUDGMENT

M.G.J. QUIGLEY J.

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Introduction, Witnesses and Summary of Conclusions

[1] The plaintiff, Marjory Cartner, was injured in a slip and fall incident which occurred on November 8, 2002 in Burlington, Ontario. She was walking from the bus stop to work that day with her friend and co-worker Monika Rourke. Marjory worked as a cashier at Denninger's Fine Foods, a large delicatessen/grocery store located at 699 Guelph Line Rd. in Burlington, close to the intersection of Guelph Line and Prospect Street. Monika worked there as well. They frequently rode the bus to work together from their homes in the Upper Middle Road area of Burlington, got off the bus at Fairview Street, walked south on the west sidewalk of Guelph Line, and then crossed at the stoplight to the shopping plaza where the Denninger's store was located. It was a pleasant late fall morning as they walked along and talked. The weather was getting colder though it had not yet reached freezing temperatures. There had been no rain for at least two days.

[2] Just as they reached the Speedy Muffler franchise at 760 Guelph Line, and just past the Crystal Shoes Store property, Marjory slipped and fell on the sidewalk. She suffered a severe fracture of her right femur. Marjory's fall was caused when her leg twisted and slid out from under her as she slipped on a muddy concrete slurry substance that had pooled on the sidewalk. She says that substance originated from the Crystal Shoes property. At that time the defendants Feng Feng Wang and Ying Jia Huang owned Crystal Shoes. The sidewalk where Marjory fell is owned and maintained by the other defendant, the City of Burlington. Marjory claims that the injuries she sustained in that accident have prevented her from returning to her job at Denninger's or from obtaining other work to this day.

[3] The principal issue for determination here is whether either or both of the defendants are liable to Mrs. Cartner for the damage she sustained, and if so, to what

extent and in what amounts. Also at issue is whether the accident prevented her from returning to work, and how long she would have worked had the accident not occurred.

[4] Whether the defendants Feng Feng Wang and Ying Jia Huang are liable will flow from whether they permitted the muddy substance to escape from their property onto the sidewalk and if they did, whether they were negligent or created a nuisance in doing so. Mr. Wang denies that he was negligent, that he created a nuisance or that the muddy concrete slurry substance even originated from his property. His wife, Ying Jai Huang, did not attend at or testify in these proceedings.

[5] The City of Burlington admits that the accident occurred on its sidewalk, but it claims it can only be found liable for damages to Mrs. Cartner if it failed to meet its obligations under the *Municipal Act* by permitting a condition of non-repair to exist that caused Mrs. Cartner to slip and fall on its sidewalk that day. Even if there was a condition of non-repair but for which the accident would not have happened, the City argues that it cannot be liable because it took reasonable steps to maintain the sidewalk and could not reasonably have known about the presence of concrete slurry on its sidewalk that morning.

[6] Marjory Cartner and her husband David Cartner both testified at this trial. The other witnesses who testified for the plaintiffs included Denise King, Marjory and David's daughter, Monika Rourke, Marjory's friend and co-worker, Fred Kussinger, a co-worker of David, Jeannie McKenzie, their friend and neighbour, and Zdenka Filipas, another of Marjory's fellow workers. While he was called by the City, Richard Breton, the manager at the Speedy Muffler outlet at the time of the accident, gave evidence favourable to the plaintiffs when he told of his observations of the accident scene before and on the day of the accident.

[7] A number of professionals gave evidence for the plaintiffs or the defence. Dr. John Holmes, Marjory's family doctor in Burlington, testified as did Dr. Greg Jaroszynski, the surgeon who performed emergency orthopaedic surgery on her shortly after the accident and who has treated her for further orthopaedic problems. Mr. Andy James, a forensic accountant testified concerning her past and likely future income, and Dr. Ian Lindsey, Marjory's family doctor since she and David moved to Barrie, Ontario, also gave his evidence. Finally, Mr. Stein Pederson, an engineer, took measurements of the accident site and testified concerning the condition of the sidewalk based on his observations and photographs taken by David Cartner on the day of the accident. Each of Drs. Holmes, Jaroszynski and Lindsey and Messrs. James and Pedersen, were accepted as expert witnesses qualified to provide opinion evidence in their areas of expertise.

[8] Feng Feng Wang testified, as did his daughter Viena Wang, but his wife, Ying Jai Huang, did not appear in these proceedings even though she was a co-owner of Crystal Shoes. The City of Burlington called four witnesses. Mr. Brian Malone was put forward as an expert on highway and sidewalk safety and construction in response to Mr. Pederson's evidence, and Dr. James Pessando, an economist, testified based on his experience and expertise in partial rebuttal to the future income loss evidence of Mr. James. Mr. Malone and Dr. Pessando were accepted as expert witnesses in their fields. Christina Cvetkovic and Lynn Powell also testified. Ms. Cvetkovic worked for the City of Burlington during the summer while attending university. She was responsible for inspecting the sidewalk where the accident occurred during the summer of 2002. Mr. Powell works in the Roads and Traffic Department of the City of Burlington. He told of the City's standards relating to roads and sidewalks, and the repair and maintenance programs that the City operated to maintain those sidewalks.

[9] The principal sections of these reasons focus on four distinct areas of consideration. Given the extent to which it was debated at this trial, the first section

reviews the current state of Canadian law on the issue of causation, and my conclusions on the legal standard that is applicable in this case in determining whether any or all of the defendants are liable to the plaintiffs for the injuries and damage they sustained. My findings with respect to the background of the plaintiffs, the accident itself and its aftermath, and the damages Mrs. Cartner and her husband David Cartner sustained follows in the second section. It includes my findings arising out of the medical evidence, with respect to the quantum of damages that are due for pain and suffering and for Mrs. Cartner's loss of past and future income earning capacity, and concerning her efforts to mitigate her damages. It includes my findings with respect to the *Family Law Act* claim of her husband, David Cartner, and her OHIP subrogated claim.

[10] The third section addresses the liability of the defendants Feng Feng Wang and Ying Jai Huang in negligence and in nuisance and sets out my findings of credibility on the evidence of Mr. Wang in the face of other evidence that was advanced at this trial. It concludes with my findings with respect to the liability of these defendants.

[11] The fourth section of these reasons focuses on the liability of the Corporation of the City of Burlington, and my findings on the many questions that arise out of the peculiar framework of analysis applicable to it as a municipality. It sets out my review of the evidence and my findings that the sidewalk was in a state of non-repair and that the City knew or ought to have known of that state of non-repair. It considers the construction of the sidewalk, and the City's policies and actual inspection practices with respect to its sidewalks. It concludes with my findings of liability against the City. In the last section of these reasons, the extent to which each of the defendants in this matter should share liability towards the plaintiffs is addressed.

[12] There are many instances in the sections that follow where I set out the alternative submissions made by the parties on the evidence and my specific findings in response to

those submissions, but it will be evident and should be understood that the descriptions that follow of the events that transpired and concerning the persons involved represent my factual findings in this matter.

[13] For the reasons that follow, I have found that the plaintiffs are entitled to succeed against all of the defendants. Feng Feng Wang and Ying Jia Huang are liable to the plaintiffs, both in nuisance and negligence. The City is liable since I have found that it failed to keep the sidewalk in a reasonable state of repair and since that failure was a cause of the accident and the damages sustained by Mrs. Cartner. I have found that but for its failure to maintain the sidewalk in question in a reasonable state of repair as it was obliged to do by statute, Mrs. Cartner would not have slipped and fallen on November 8, 2002 on the concrete slurry substance that escaped from the Crystal Shoes property and that had pooled on the City's sidewalk. Moreover, neither of the statutory grounds of defence available to the City under the *Municipal Act* apply in this case for the reasons elaborated upon below. Finally, while both defendants are liable to Mrs. Cartner, liability has been apportioned for reasons that follow on the basis that the defendants Wang and Huang are 80% liable for the damages of the plaintiff, and the City of Burlington is 20% liable.

Principles of Causation

[14] There was considerable debate between counsel as to the test of causation that must be met in a case such as this, however, there should be little doubt on that question following the decision in *Resurfice Corp. v. Hanke*, [2007] 1 S.C.R. 333. There, the Supreme Court of Canada reaffirmed that the "basic test", "the general, but not conclusive, test" for determining causation, remains the "but for" test and that this test continues to apply to multi-cause injuries. A plaintiff bears the burden of showing that

“but for” the negligent act or omission of each defendant, the injury would not have occurred.

[15] The plaintiff, in *Resurface*, was badly burned when hot water was poured into the gasoline tank of an ice-resurfacing machine, causing an explosion and fire. The trial judge applied a “but for” test in determining causation. He dismissed the plaintiff’s action on the basis that the accident had not been caused by negligence of the defendants, but rather by the negligence of the plaintiff himself. The Alberta Court of Appeal set aside the trial judgment and ordered a new trial. It concluded on causation that the trial judge had erred by applying a “but for” test and by failing to consider the “comparative blameworthiness” of the plaintiff and the defendants.

[16] The Supreme Court restored the decision of the trial judge. At paras. 19 and 21, McLachlin C.J.C., writing for the Court, specifically rejected the proposition that “where there is more than one potential cause of an injury, the “material contribution” test must be used.” At paragraphs 22 and 23 she continued:

This fundamental rule has never been displaced and remains the primary test for causation in negligence actions. As stated in *Athey v. Leonati*, [[1996] 3 S.C.R. 458], at para. 14, *per* Major J., “[t]he general, but not conclusive, test for causation is the ‘but for’ test, which requires the plaintiff to show that the injury would not have occurred but for the negligence of the defendant.” Similarly, as I noted in *Blackwater v. Plint* [[2005] S.C.R. 3], at para. 78, “[t]he rules of causation consider generally whether ‘but for’ the defendant’s acts, the plaintiff’s damages would have been incurred on a balance of probabilities.”

The “but for” test recognizes that compensation for negligent conduct should only be made “where a substantial connection between the injury and defendant’s conduct” is present. It ensures that a defendant will not be held liable for the plaintiff’s injuries where they “may very well be due to factors unconnected to the defendant and not the fault of anyone”: *Snell v. Farrell* [[1990] 2 S.C.R. 311], at p. 327, *per* Sopinka J. (citations added)

The Chief Justice noted, however, that the law does recognize exceptions to the basic “but for” test in special circumstances, and will permit a “material contribution” test to be

applied. Two prerequisites must be present. It must be impossible for the plaintiff to prove that the defendant's negligence caused the plaintiff's injury using the "but for" test and that impossibility must be due to factors that are outside of the plaintiff's control. Further, it must be clear that the defendant breached a duty of care owed to the plaintiff, thereby exposing the plaintiff to an unreasonable risk of injury, and the plaintiff must have suffered that form of injury or, in other words, the plaintiff's injury must fall within the ambit of the risk that was created by the defendant's breach. Only in those exceptional cases where those two requirements are present may liability be imposed, even though the "but for" test of causation is not satisfied. Most importantly, it is permitted to be applied in those cases because otherwise basic notions of fairness and justice would be offended if a plaintiff's valid claim failed and appropriate liability was denied for failure of the stricter "but for" test requirements to be met.

[17] The Court cited two cases as examples. In the first, liability was still imposed even where it was impossible to say which of two gunshots carelessly fired at the plaintiff by two persons caused the plaintiff's injury, because each of them had created an unreasonable risk of injury (*Cook v. Lewis*, [1951] S.C.R. 830). In the second, liability was still found in a tainted blood case where the impossibility of proving what a person in the causal chain would have done, in the absence of the defendant's negligent conduct, broke the chain of causation (*Walker Estate v. York Finch General Hospital*, [2001] 1 S.C.R. 647). However, following *Resurfice*, it is neither legally necessary nor justified to apply the "material contribution" test, or so-called principles of "comparative blameworthiness" in the absence of such circumstances

[18] This is not to say that there is no scope in this case for a partial application of "material contribution" concepts within the strictures of the principled approach to causation mandated by *Resurfice* in determining whether either or both of these defendants are liable to the plaintiffs. This follows since nothing in *Resurfice*, or the

strong authorities that preceded it, prevents liability from being found against a defendant where the defendant's negligence is found to be "a cause" of injury on a balance of probabilities, even if not the ultimate cause. While the Supreme Court reaffirmed that "the basic test for determining causation remains the "but for" test, and that it applies to multi-cause injuries, in doing so it also specifically reaffirmed its decisions in *Athey v. Leonati* and *Snell v. Farrell*.

[19] The very notion of a "contribution to injury" was at the heart of the decision in *Snell*. As Major J. noted on the authority of *Snell*, at paragraph 13 of *Athey*, "[c]ausation is established where the plaintiff proves to the civil standard on a balance of probabilities that the defendant caused or contributed to the injury." Further, he observed at paragraph 14 that the causation test is not to be applied too rigidly and that causation need not be determined with scientific precision. Referencing Sopinka J.'s adoption in *Snell* of Lord Salmon's caution in *Alphacell Ltd. v. Woodward*, [1972] 2 All E.R. 475 at p. 490 that causation is "essentially a practical question of fact which can best be answered by ordinary common sense", Major J. concluded in part, as follows, at paragraphs 16, 17 and 19:

Although the burden of proof remains with the plaintiff, in some circumstances an inference of causation may be drawn from the evidence without positive scientific proof.

...

As long as a defendant is part of the cause of an injury, the defendant is liable even though his act alone was not enough to create the injury. There is no basis for reduction of liability because of the existence of other preconditions: defendants remain liable for all injuries caused or contributed to by their negligence.

...

The law does not excuse a defendant from liability merely because other causal factors for which he is not responsible also helped produce the harm: Fleming [*The Law of Torts*, (8th ed. 1992)], at p. 200. It is sufficient if the defendant's negligence was a cause of the harm: *School Division of Assiniboine South, No. 3 v. Greater Winnipeg Gas Co.*, [1971] 4 W.W.R. 746 (Man C.A.), at p 753 aff'd [1973] 6 W.W.R. 765 (S.C.C.), [1973] S.C.R. vi; Ken Cooper-Stephenson, *Personal Injury Damages in Canada* (2nd ed. 1996, at p 748. (Major J.'s emphasis) (citations added)

[20] Counsel for the City argued strenuously here that not only must the plaintiff prove the existence of a condition of non-repair if liability is to be imposed against it, but more importantly that the existence of that condition caused the injury to the plaintiff. She said that the plaintiff bears the burden of showing that “but for” the negligent act or omission of each defendant, that is both the owners of Crystal Shoes and the City of Burlington, the injury would not have occurred. Thus, as in *McMaster*, below, she says the plaintiff must show not only non-repair, but also that if the condition had not existed the accident would not have occurred. As in *Blanquiere*, below, where the Court concluded that the plaintiff had to show that the presence of the trip-ledge on the sidewalk caused the plaintiff to fall, she says the plaintiff here must show that but for the condition of non-repair, Mrs. Cartner would not have fallen. While these propositions seem correct, the real question is the level of proof that must be present to permit that causal connection to be established on the balance of probabilities.

[21] Counsel for the City argued vigorously that there was no evidence presented at this trial that if the City’s sidewalk had not been sloped, the accident would not have occurred. She argued vigorously that it was open to the plaintiff to try to reconstruct the sidewalk and to advance evidence to show that “but for” the sloped sidewalk, or “but for” the pooling of the concrete slurry on that sidewalk, or “but for” the combination of the sidewalk slope and sidewalk grinding that had occurred at the exact site of the accident, it would not have occurred, but that the plaintiff did not do so.

[22] However, I return to the evidentiary principles that were enunciated in *Athey* and *Snell*, and that were affirmed by the Court in *Resurfice*. The evidentiary standard is on a balance of probabilities. Proof that the state of non-repair that I have found to have existed was “a cause” of the accident does not need to be established here with the level of scientific precision and exactitude sought by the City. The plaintiffs here need not prove that the state of non-repair of the sidewalk was *the cause* – they need only show

that it was *a cause*. Further, the authorities establish not only that the matter may properly be considered as a practical question of fact which can best be answered by ordinary common sense being applied to the facts that have been proven, but also that an inference of causation may be drawn from the evidence without positive scientific proof.

[23] For the reasons set out below, applying ordinary common sense to the facts that were proven before this Court, and drawing appropriate inferences of causation from those facts, even in the absence of the rigorous scientific proof that the City advocates must be present, I have concluded that the plaintiffs have met the standard of causation demanded by *Resurfice* and have proven on a balance of probabilities that the state of non-repair of the City's sidewalk was "a cause" of Mrs. Cartner's accident, but for which, on a balance of probabilities, it would not have occurred.

[24] However, I would venture further. Even if I had not reached those findings, in my view, this is arguably the very kind of case that calls for the application of the "material contribution" test. There is no doubt that the defendant City owed a duty of care to the plaintiff to prevent unreasonable risk of injury by ensuring that its sidewalks, and this sidewalk in particular, were kept in the state of repair that the City is statutorily required to maintain. Mrs. Cartner suffered the form of slip and fall injury that the City had a duty to guard against. Failure to maintain that standard breached the City's duty of care to the plaintiff and meets the second element of the two requirements that *Resurfice* establishes must be met if the material contribution test is to be applied. More difficult is whether there is an impossibility of proof here that would prevent the plaintiff from proving the existence of the state of disrepair of the sidewalk for factors that are outside of its control.

[25] Here, the records maintained by the City respecting the construction and maintenance of its sidewalks were limited at best as I have found in the reasons that

follow. The City was not able to tell the Court when the original sidewalk was constructed and by whom. While it acknowledged that the three reverse sloped slabs were newer than the rest of the sidewalk, it was unable to clearly identify when those newer slabs of sidewalk had been constructed. It had no work orders or contracts that might have permitted the plaintiff to show that those three slabs were improperly constructed. It had only limited records of sidewalk inspection, and these were cursory at best in their detail of sidewalk imperfections and trip ledges that might require repair. There was no evidence of repairs having taken place on the north edge of the three newer slabs in any work order with respect to the grinding work that appears actually to have been performed in 1999, three years before the accident. That such repairs occurred could only inferentially be determined from a listing of amounts paid globally to a contractor for numerous sidewalk trip ledges around the City that had all been repaired by the same contractor at about the same time.

[26] Finally, when it was requested on discovery to produce all documentation relating to these issues, and in particular the issue of construction which I accept that the plaintiffs made clear they intended to raise, the City refused. Yet in the face of this absence of documentary foundation being available from the City to show that it did meet its statutory repair obligation under the *Municipal Act*, and the failure of its own employees to do a search of its records as noted later in these reasons, the City suggests, with all of the formidable resources it brought to bear on this trial to avoid liability, that it is the plaintiff who should have undertaken the cost of a sidewalk reconstruction. It says the plaintiff should have brought the scientific evidence it says should have been advanced to show that the sidewalk was in a state of disrepair, that it had been improperly constructed and did not permit proper drainage, that there were dangerous potential pooling issues that could arise on this sidewalk due to the reverse slope of the three sidewalk slabs

where the accident occurred, and that the reverse slope of the three slabs was due to action or inaction on its part, rather than to unexplained forces of nature.

[27] In the result, for the reasons that follow, applying the appropriate evidentiary tests to which I have referred, I have found that the plaintiffs have successfully established that the state of the sidewalk's disrepair was a cause, but for which the accident would not have occurred. However, it is important to bear in mind that the public policy purpose that permits the application of the "material contribution" test is that basic notions of fairness and justice would otherwise be offended if liability were to be denied where the requirements of the stricter "but for" test could not be met. In my view, while not necessary to the decision I have reached, this is just such a case. In the event that I have erred in my findings of causation against the City applying the test mandated by *Resurface* and using evidentiary principles established by *Snell* and *Athey*, in the particular circumstances of this case I would not have hesitated to reach the same conclusion on the basis of a fair application of the "material contribution" test.

The Accident, Mrs. Cartner's Damages and Mitigation:

1) Background of the plaintiffs:

[28] Marjory Cartner was born on December 29, 1949. She was just shy of her 52nd birthday when the accident occurred, and by the time the trial commenced, she was almost 58 years of age. She and her husband David Cartner have been married for over 30 years. He makes a *Family Law Act* claim in this action. Marjory and David have three children, Denise and David who live in London, Ontario and Christopher, who lives in British Columbia. Denise has two children, aged nine and seven, who are Marjory's grandchildren.

[29] Marjory achieved Grade 10 education at Napanee High School. She took a hairdressing course in 1968, but she has no other transferable skills. Since leaving

Napanee, she has lived in Toronto, London and Burlington. Marjory worked at the Miracle Food Mart when they lived in London. She worked 24 hours per week making \$11.75 per hour and she held that job for over 10 years. Marjory and David moved to Burlington in about 1989 and she obtained her position at Denninger's shortly after that relocation.

[30] Initially, Marjory worked mostly at the Denninger's meat counter and as a cashier. Her working life was interrupted in 1996 when she was off work for 9 months fighting breast cancer. Edema complications in her right arm that arose following that successful fight with cancer prevented her from lifting heavy loads once she returned to work, which forced her to stop working in the meat and deli departments. From 1996 until the time of the accident, she worked Tuesdays through Saturdays in all of the other departments at Denninger's. While Marjory described her activities at Denninger's as "a one man band" reflective of her hard work every day that was confirmed by Monika Rourke and Zdenka Filipas, typically she spent most of her work day serving as a checkout cashier. As a cashier, her job still involved significant physical requirements, including a great deal of lifting and standing for 7½ to 8 hours each day. Although she was skilled in the running of a cash register, Marjory had no other computer skills. In 2000, she earned employment income of \$22,683. In 2001 that income was \$24,361 and in 2002, her employment income was \$22,202.

[31] The financial contribution Marjory made was important for their household even though her husband David was the principal "breadwinner" in their family. It was evident that Marjory loved her job at Denninger's and very much enjoyed the company and friendship of her co-workers. Marjory found her work to be pleasurable and it provided her with the opportunity to get out of the house and to obtain spending money of her own. By the time the accident occurred, she had worked at Denninger's for 12 years and she had made a lot of friends.

[32] Marjory also liked her job because it was relatively easy for her to get to work. She did not have a driver's licence so throughout her life she had taken the bus and other public transit or moved around by foot to get wherever she wanted to go. The trip to Denninger's from her home in the Upper Middle Road area of Burlington, above the Queen Elizabeth Way, was a simple one, involving one bus trip down Guelph Line and a short walk to the Denninger's location in the plaza on Guelph Line near Prospect Street. Her husband David Cartner worked in Concord, Ontario, about a 45 minute drive northeast of Burlington.

2) The occurrence and its aftermath:

[33] The accident that gave rise to Marjory's injuries occurred on November 8, 2002. She and Monika Rourke were walking southbound along the sidewalk in front of Crystal Shoes and the Speedy Muffler outlet. The weather was good. It was a bright dry day. While Marjory was wearing her winter coat, there had been no snow yet and it was her evidence that it had not rained recently. I will have more to say about the prevailing weather that day and in the preceding days in my consideration of the evidence of Mr. Wang.

[34] Monika was walking on the left on the street side of the sidewalk and Marjory was on the right. Just past Crystal Shoes, Marjory "went flying", in her words, falling on a dew-covered slippery substance at about 7:30 in the morning. Her right leg went right out from underneath her and she fell on it with the leg taking the weight of her fall. Marjory heard her leg snap. She knew that it was broken when she was lying on the ground screaming at Monika to get help. She was in great pain. Monika noticed not only that the sidewalk was muddy, and that Marjory had fallen in the muddy area, but also that the sidewalk was much muddier on the right side, away from the street, on the side of the sidewalk where Marjory had been walking. Evidence of that concrete mud was present in the courtroom because it was still present coating the proper walking shoes Marjory

had been wearing that day. Marjory gave those shoes, wrapped in a Denninger's shopping bag, to the lawyer she first saw in late November of 2002, only a few weeks after the accident, when she determined that she would make a claim in connection with this accident. Those shoes were introduced as Exhibit 1 at the trial.

[35] Monika went into the Speedy Muffler to ask for help. Richard Bretton, a manager at that time at Speedy Muffler, came out to assist and also called an ambulance as Monika had requested. Marjory was taken to Joseph Brant Memorial Hospital. David Cartner was contacted by Denninger's within a very short time following the accident. They told him that his wife had fallen and been taken to the hospital. David came as soon as he could get there. He arrived at the hospital and saw her at about 9:00 a.m. He found her lying on a stretcher in the hallway. She had been given morphine to control her severe pain. Seeing the state she was in, he knew that she had sustained a serious injury, though he had not yet spoken to the doctors and did not know exactly what it entailed. He also knew there was little he could do at her side, so he left the hospital, retrieved his camera from their home and went to the scene of the accident to take photographs. David arrived at the accident scene just after 10:00 a.m., between two and a half to three hours after the accident occurred.

[36] David took all of the photographs that were contained in Exhibit 4, however, he did not enter onto the Crystal Shoes property. He made his observations from positions on the city sidewalk and on the Speedy Muffler property next door to Crystal Shoes. He also spoke to the staff at the Speedy Muffler franchise. It was of great assistance to me that David Cartner was able to provide first-hand evidence at this trial of his observations concerning the physical circumstances present at the accident scene, observations that were corroborated by the photographs he took personally only a few hours after the accident occurred.

[37] From his observation point on the sidewalk, or on the Speedy Muffler property, he observed a substance which appeared to have flowed down from the front stoop of the Crystal Shoes store, underneath the Crystal Shoes step-van that was parked at the south edge of the Crystal Shoes property, and onto the City of Burlington sidewalk. He observed that the path of that grey-coloured substance started at the edge of the concrete stoop in front of Crystal Shoes. It appeared to him that some concrete work had been done very recently to the step in front of Crystal Shoes. He determined this from the presence of wooden concrete retaining forms that were still in place around the edge of the Crystal Shoes front stoop, as evidenced by the photographs, and as a result of speaking to individuals at Speedy Muffler. Based on that information, he concluded that the owner of Crystal Shoes had done concrete repair work himself on the stoop in the days immediately preceding the accident. Moreover, he observed that the cement work that had been done did not yet appear to be fully dry. As for the substance on which Marjory had slipped and which he found still present on the sidewalk, it was damp, muddy and soft. It appeared to David Cartner to have been wet concrete slurry that had flowed from the stoop area in front of Crystal Shoes down the sloped driveway, and that had come to rest where it pooled on the sidewalk maintained by the City.

[38] As the photographs show, and as David testified, the muddy concrete slurry substance had pooled on the three slabs of City sidewalk located immediately to the south of the Crystal Shoes property line after flowing off of the Crystal Shoes property. The pooled concrete slurry was still wet when he saw it. He could see the trail of a sliding footprint in the slurry, a footprint that remains visible in the photographs he took. That slide-mark was caused by Marjory when her right leg went down and out from under her as she slid, fell and severely fractured her right femur in that location that same morning.

[39] Marjory's orthopaedic injuries were attended to by Dr. Greg Jaroszynski, the orthopaedic surgeon who was on duty in the Emergency Department at the hospital on

the morning that Marjory was admitted. He diagnosed her as having sustained a fracture of the supracondylar region of the left femur located just a couple of inches above her right knee joint. As the x-rays showed, the fracture itself was long and oblique with several distinct fracture lines extending over a distance of several inches of Marjory's right femur. Her knee and leg were also swollen close to the knee, the knee was bruised, and any attempted movement of the knee caused her great pain. Dr. Jaroszynski recommended and performed a surgical fixation of the fracture in the evening of November 8th by the application internally of long stainless steel plates affixed to the fractured parts of the femur by numerous screws and kept in place with the assistance of several internal fixation wires.

[40] For some time after this surgery, Marjory was not permitted to bear any weight on her fractured leg. She was permitted to commence bearing weight only once x-rays showed that adequate healing had started to take place. On one of the post-operative visits Marjory made to Dr. Jaroszynski's office, he found stiffness in her knee, not an uncommon affliction after surgery of this kind given the inability of the patient to move the knee. That lack of mobility caused stiffness, swelling and pain, all symptoms that Marjory presented with, and indeed Marjory continued to complain of pain in both her knees even after her period of rehabilitation, and the physiotherapy treatment she received.

[41] Initially after returning home from the hospital, Marjory was confined to a wheelchair, but thereafter, as her rehabilitation progressed, she was able to start walking, first with a walker, and later with the aid of a three-point cane that she uses to this day. She continued to take physiotherapy for 9 months after the accident. However, in the spring of 2003 when she started to go back to work, she continued to be plagued by severe pain in both of her knees. This knee pain caused her difficulty in performing her ordinary household chores, especially where walking and standing were involved.

[42] Not surprisingly, after her discharge from hospital, the duty to look after Marjory fell extensively on her husband David during the rehabilitation process that followed. He had to take over many of the cooking and cleaning duties in their home, and he had to assist Marjory with her personal care. Marjory's physical abilities had become more limited since the accident and her ability to participate in activities had been significantly curtailed. David estimated and I find that her activity level is down about 50% less than it was prior to November 8, 2002. However, Marjory's injuries also had a significant impact on David. Fred Kussinger, one of David's co-workers, confirmed that Marjory's injuries had taken a visible toll on David at work and put him under considerable strain.

[43] There was other immediate fallout from the incident as well. Marjory and David had hoped to visit their daughter Denise in London, Ontario after she was diagnosed with cancer not long after the accident, but Marjory's condition prevented them from doing so. Marjory was very disappointed and upset that she was unable to assist her own daughter with the care of her children at her daughter's time of need, owing to her own injury.

[44] Ultimately, as mentioned, Marjory endeavoured to return to her former position at Denninger's on a part-time basis in May, 2003. However, she found that she was not able to stand for the very long periods of time required to enable her to again discharge her duties as a cashier without experiencing significant pain. The weakness in her leg resulting from the injury, and the subsequent surgery, simply did not permit it. Her right knee was causing her considerable pain all the time. It had borne the brunt of her weight in the months following her surgery when she had not been able to bear weight on her left leg. She testified that she could hear "crunching sounds", like a "popcorn noise" in that right knee. Marjory only returned to work for a few days before the pain caused her to stop working. She went to see Dr. Holmes about her circumstances about one week later and told him about the significant pain she had experienced in the course of trying to return to her duties at Denninger's. He assisted her in reaching the decision in June of

2003 that she was medically unable to continue in a job where prolonged standing was required.

[45] Prior to the accident, Marjory's financial contribution to the Cartner household had been an important one, both to her and to David. I accept, as she testified, that she needed to cash in some of her RRSPs as a result of the injuries to provide them with additional ongoing financial support that they required (Exhibit 6, Tab 4).

[46] Marjory underwent a total right knee replacement in July 2006. As Dr. Jaroszynski's evidence established, as detailed further below, she now faces two potential further surgeries to repair her left knee and leg owing to osteoarthritis that developed in her knee joint immediately below the fracture area. If that surgery were to be performed, her right femur would first have to be operated on to remove the plates and screws that were implanted immediately following the slip and fall accident, and only then, after she had recovered from this preliminary surgery, could the second actual knee replacement surgery be undertaken. To this day, Marjory continues to experience pain in both knees and in the area of her right femur.

[47] Moreover, it is evident and I find that the presence of this pain has had a significant impact on her quality of life. Apart from the pain she continues to experience, she feels less able to meet with friends and to socialize outside their home. She cannot sit through a movie with her husband or friends, because she cannot stay in a single position for a long period of time. Marjory's and David's evidence confirmed that this same difficulty prevents them from driving from their home in Barrie to visit their daughter in London as frequently as they both would like, and it has become too difficult for her to now have her grandchildren visit her once a month as she used to. I accept that those visits have become virtually nonexistent.

[48] Both her daughter and husband acknowledged that Marjory was a great cook who had enjoyed making preserves and baking before the accident. Fred Kussinger also remembered enjoying the fruits of Marjory's baking efforts. However, she has had great difficulty completing cooking tasks since the accident. Neither is she able to clean her home in the same way she used to, and those tasks now also require David's involvement. These extra duties, combined with his daily drives to and from work, appear to be the source of the extra strain he appeared to carry, a burden that was visible to his friend and co-worker, Fred Kussinger.

[49] Marjory's injury and its aftermath have also negatively affected other aspects of the life that she and David shared. Marjory had bought a dog to provide them with companionship, with an incentive to exercise by walking. She hoped this regular exercise would improve her health and help to curb her diabetes, but she can no longer walk the dog for more than a block at a time. She used to walk the dog two to three times a day for about 45 minutes. Marjory's ability to get around, to enjoy shopping, and to wander about at the malls has been significantly curtailed. Moreover, the extensive and regular attendances at "garage sales" that she and her husband David once made as a significant form of weekend entertainment has been cut back substantially. They still drive around to the sales, but now Marjory cannot stand for very long, so she often just sits in the car while David pokes around. There is no doubt, however, that to the extent that it was a leisure activity they enjoyed doing together, the character and pleasurable nature of that activity has changed forever for both of them.

[50] To this day, Marjory continues to have difficulty sitting or standing for lengthy periods of time and she continues to experience pain in both of her legs. She had suffered from breast cancer and diabetes prior to her injury on November 8, 2002, but she has also experienced other health difficulties since that time, having to cope with a kidney infection, cataracts, glaucoma, and a mini-stroke. In November 2003, a year after the

accident, Marjory and David moved to Barrie to reduce their housing costs while not significantly expanding David's drive to work in Concord, Ontario. This had become important for them since Marjory was no longer earning an income, and I find that was the primary motivation for the move. It was argued by the defendants that the move by the Cartners to Barrie was a "retirement" decision, but this is not a proposition I accept. Jeanie McKenzie, Marjory's neighbour and friend of 10 years on Upper Middle Road, confirmed that the Cartner's had moved because they wanted more space and would get more home at a better price. If it had been a "retirement decision", then it seems much more likely that the Cartners would have moved to London to be closer to their children and grandchildren, rather than farther away. Further, the evidence established that in moving to Barrie they would be able to modify the house plans so that the bedroom was on the ground floor to accommodate Marjory's disability and ensure that she would not need to be climbing stairs on a regular basis. If it were not for her leg difficulties, these changes would not have been necessary. If it were not for her leg difficulties, I find that Marjory would still be able to enjoy the activities she and David pursued together, including rummaging at Saturday yard sales, and Marjory would be getting her exercise to control her diabetes because she would be walking the dog several times a day.. If it were not for her leg difficulties, I accept that Marjory could and would still be working.

3) Medical evidence and findings relating to Mrs. Cartner:

[51] Mrs. Cartner gave evidence at trial concerning her medical condition prior to and after the accident. I have previously noted that she was diabetic which required regular monitoring and, as Dr. Holmes would testify, she suffered from flat feet which required that she wear orthotics in her shoes. Marjory also testified and I find that she had been told that she did have arthritis prior to the slip and fall accident. That arthritis originated in her back and apparently had its origins in back pain she experienced many years before

in 1971 at the time her daughter, Denise, was born. However, she claimed to take no treatment for it, and emphasized that it did not affect her day-to-day activity in any way.

[52] Marjory also testified that she had experienced some vision issues prior to but more importantly after the accident. She had experienced some clouded vision, but claimed she had not been told prior to the accident that she suffered from glaucoma. She testified that she had had no trouble seeing while walking before the accident occurred. Nevertheless, it was evident that there were vision issues for her, and she had actually been scheduled for cataract surgery to improve her vision at the time of the accident, a surgery that had to be delayed until September of 2003. Nevertheless, it was her evidence that the minimal clouded vision she experienced did not cause her any problems and could be corrected by wearing glasses. Marjory confirmed that she was not wearing glasses at the time of the accident. Following the accident, her vision has continued to present her with challenges, a situation not uncommon for diabetics. In cross-examination she acknowledged that she had significant laser eye surgery in the fall of 2006, and indeed her vision issues became serious enough that she actually went blind in her right eye in the summer of 2007.

[53] Apart from the pain she experienced as a result of the fractured femur that she suffered in the slip and fall, and the diminished activity level it caused her to be able to bear in her day-to-day life after the accident, Marjory also testified concerning the knee problems that she experienced before and following the accident. She had previously slipped on water in the Denninger's kitchen in the fall of 1994 and bruised her right knee, but she had no recollection that that incident had caused any residual pain and she had not missed any work days. She confirmed that she was not experiencing any regular right knee pain before the slip and fall accident.

[54] In the six months that followed the accident, however, Marjory said her right knee hurt all the time. When she went for a knee x-ray in June of 2003, she was told that she would need a knee replacement, but she was warned by Dr. Holmes that she was too young. Dr. Holmes told her that the cartilage in her right knee had disintegrated and that her right knee joint had deteriorated to a “bone-on-bone” situation. She was taking Celebrex to manage the pain but the bad situation with her knees was affecting her activity level and she testified it took her much longer to do ordinary day-to-day tasks than it had prior to the accident. As Dr. Jaroszynski’s evidence confirmed, when she was referred back to him for the knee problems and for a medical/legal consultation in connection with this claim, he determined that the surgery could not wait any longer so he performed a right knee replacement surgery on her in July of 2006. However, while this was ongoing, Marjory had also started to develop similar arthritis based problems in her left knee, and this knee also will ultimately need to be replaced. Unfortunately, as previously noted, because of the complication of the femur repair surgery directly above her left knee, two surgeries will be required to repair the left knee.

[55] Three doctors testified at this trial concerning Marjory Cartner’s medical condition as it was, not only after the November 2002 accident, but in the years before. These were first Doctors John Holmes and Ian Lindsay. They were accepted by the Court as experts in family medicine. Each of them has been intimately involved in treating Mrs. Cartner. Dr. Holmes practices in Burlington and he was Marjory’s family doctor when Marjory and David Cartner lived there. He continued to be her treating family physician through the period of the 2002 accident until she moved to Barrie in 2004, and Dr. Lindsay has been responsible as her family physician for her treatment since that time. Finally, the Court heard the evidence of Dr. Greg Jaroszynski, the emergency orthopaedic surgeon who performed the surgical repair on Marjory following this accident, and who has treated her for consequential problems she has experienced since then with her knees.

[56] Dr. Holmes runs a busy practice in which he treats over 3,000 patients a year. He first saw Marjory in 1995 when he treated her following a diagnosis that she is a diabetic. He saw her three times that year relating to her diabetes and also treated her for problems with her feet, prescribing orthotics for her to wear in her shoes. He saw her numerous times the following year, not only for continuing management of her diabetes, but more importantly, also in connection with a January 1996 diagnosis that Marjory had breast cancer. He testified that this condition was treated surgically through a segmental resection performed by Dr. Riley, through six cycles of chemotherapy administered between March and August of 1996, and through radiation treatment that was administered from August until the beginning of October that year.

[57] Marjory successfully defeated her breast cancer, but that success came at a price. As she testified, one of the side-effects of her treatment was lymph edema in her right arm that caused her right arm to be painfully swollen. This condition, and the weakness that accompanied it, required that she stop working at the Denninger's meat and deli counters, where heavy lifting was involved, and instead undertake other tasks at the store, principally as a cashier.

[58] Dr. Holmes continued to see Marjory over the ensuing years preceding the slip and fall accident, principally for continuing monitoring and maintenance of her blood sugar levels associated with her diabetes, and on one occasion in 2000 he referred her for consultation to Dr. McGillivray in connection with the development of a right eye cataract. Dr. Holmes testified that vision issues can arise for diabetics, but Dr. McGillivray found no evidence when he saw her of diabetic retinopathy. Thereafter, up until the accident, Dr. Holmes continued to monitor Marjory's sugar levels and encouraged her to exercise and maintain her activity level as a tool in the fight against her diabetic condition. It was Dr. Holmes' evidence that Marjory was not having any difficulties with either her diabetes or her vision that affected her ability to work or carry

out her daily activities right up until he started to deal with the aftermath of her slip and fall, and the orthopaedic surgical repair of her left femur that injury required. I accept this evidence.

[59] Following the accident, Dr. Holmes was more focused on the fallout from the broken femur, even though he continued to manage Marjory's continuing issues with diabetes and her vision. By March 17, 2003, 4 months after the accident, Dr. Holmes' notes reflect that Marjory was still not ready to go back to work. She was continuing to experience pain at the end of April – pain described more like an ache. As for the leg injury, Dr. Holmes observed that Mrs. Cartner had experienced muscle wasting in her leg owing to inactivity during the period she was unable to walk following the accident and surgery.

[60] Dr. Holmes saw Mrs. Cartner next in June 2003, just after she had stopped working at Denninger's. Dr. Holmes observed that Mrs. Cartner's right knee had been getting sore as a result of her return to work, causing unbearable pain at times. An x-ray of Mrs. Cartner's knee showed a narrowing of the joint spaces in the knee compatible with osteoarthritis, that is, "wear and tear" arthritis, however, it was not severe. His clinical notes show that he advised her to take two weeks off work and to take anti-inflammatory drugs, and to use a tensor bandage to provide support to her knee. By July 4th when he saw her for a follow-up on her knee problems, x-ray reports showed that there was almost no cartilage left in her knee, which he concluded was a finding consistent with the pain she was experiencing. He also observed that since she had stopped being on her feet all day since stopping work, and commenced taking the anti-inflammatory drug Celebrex, her physical pain condition had improved. Nevertheless, her creatinine levels were high, and he was concerned this could have been caused by the taking of Celebrex. In any event, his notes recorded his advice to Marjory that she not continue to do any job that required excessive standing, but he also recommended that

she could endeavour to find more sedentary employment, where she would not be “on her feet all day” and that would not exacerbate the pain in her knees.

[61] By the time Dr. Holmes next saw her in May of 2004, the Cartners had moved to Barrie. She was experiencing increased pain of her right knee, which he concluded was likely caused by the chronic problems she was experiencing in her left knee and leg, and which likely caused excessive strain on the right knee. This was the last note made by Dr. Holmes of his treatment of Marjory, apart from a June 21, 2004 three month repeat of her prescription for Celebrex. It should also be noted, however, that Mrs. Cartner was exhibiting quite high blood sugar levels at that time, and it was Dr. Holmes’ view that more aggressive action needed to be taken to control her diabetes.

[62] The continuing deterioration of her knees ultimately led Mrs. Cartner back to Dr. Jaroszynski. He prepared two expert medical/legal reports - the first after seeing Mrs. Cartner in October of 2005 and a later follow-up, updated report. Dr. Jaroszynski’s evidence concerning the actual surgical repair of her fractured femur is recounted above. However, he also testified extensively concerning the types and causes of arthritis, and specifically the arthritic condition that developed in Marjory’s knees after her femur was surgically repaired. It was his opinion that Mrs. Cartner had developed accelerated arthritis in her right knee due to the fact that she had to bear excessive weight on her right side because she was unable to weight-bear on the left leg following the initial surgery.

[63] When he saw her in October 2005, she had a limp due to pain in her legs, and shrinkage of the musculature around both thighs, though the incision had healed well. There was tenderness on palpitation, and a loss of range of motion. In Dr. Jaroszynski’s opinion, these symptoms were in keeping with significant osteoarthritis in both knees. These symptoms were most pronounced around the kneecap, which the doctor concluded was the source of Marjory’s increasing significant disability. It was his opinion that the

slip and fall injuries had been a contributing factor to the significant progression of Marjory's arthritic condition. The injuries did not cause the arthritis, but they were a significant accelerator of the arthritic condition that was increasingly the source of her disability.

[64] Dr. Jaroszynski explained that in one person without any sort of genetic or biological predisposition, this might well not have happened. But in another case like Marjory's, where he was surprised to see such an acceleration of advanced arthritis in such a relatively short time span between the time of her surgery and his October 2005 consultation, it was evident to him that this is exactly what had happened. It was his opinion that Marjory Cartner had some predisposition, either weak cartilage, or perhaps a biomechanical or biological weakness, which permitted her arthritis to accelerate from mild to significant, to the point of disability requiring an artificial joint within two or three years, as a result of the triggering effect of the accident.

[65] Because of a significant amount of arthritis that he discovered, and the disability that it caused, it was Dr. Jaroszynski's opinion that Marjory Cartner was not able to return to work that required standing for eight hours a day. He explained that people with significant arthritis of the knees, and the pain it causes, are not likely to really be in a position to do any kind of work because they are suffering significant pain. Walking to and from the bathroom is painful. They have to take painkillers to control their pain. It is hard to imagine, he said, that people in that amount of pain would be able to do any kind of productive work.

[66] Owing to her materially deteriorated condition, Dr. Jaroszynski did a knee replacement on Marjory's right knee in 2006. As noted, however, this will not be the end of Marjory's surgeries since her left knee has now substantially deteriorated as well due to her accelerated arthritic condition. It causes her significant pain. However, a repair of

that knee is a considerably more complex proposition, involving two surgeries, the first to remove the metal plates installed at the time her fractured femur was prepared, and only once she has recovered from that surgery will she be able to undertake the actual left knee replacement surgery itself.

[67] Finally, Dr. Ian Lindsay, Marjory's current family physician in Barrie, testified concerning his treatment of Marjory since she became his patient in September 2004. He also saw her on August 16, 2005 for the preparation of a medical/legal report. At that time, he found that significant trauma had been caused to her left femur, which he attributed to the accident, and she had a large surgical scar on the side of her left thigh with some deformity and wasting of quadriceps muscles. Testing disclosed deformity of the right knee and weakness and disability of both legs. He observed that Mrs. Cartner was unable to kneel and had difficulty getting on his examining table, and linked these disabilities to the fractured left femur that resulted from the 2002 slip and fall accident.

[68] It is Dr. Lindsay's opinion that Marjory suffers from a permanent disability of both of her legs that would not improve, caused by the fracture of the left femur. He said that she would never again work as a cashier, even on a part-time basis. However, he appears to have agreed with Dr. Holmes that Marjory might be able to work on a part-time basis, as long as the work was sedentary and required little standing or walking. In his opinion, the arthritis in her knees was materially aggravated by the injury to her left thigh. It was also Dr. Lindsay's opinion that Marjory was totally disabled well before she had any glaucoma or mini-stroke issues attributable to other aspects of her health.

[69] All three doctors, Dr. Jaroszynski, Dr. Holmes and Dr. Lindsey, concluded that Marjory Cartner is disabled. Their evidence confirms that Marjory experiences significant pain in the aftermath of the slip and fall accident. At 58-years of age, she can no longer stand for the times she previously did or move around with the facility she

previously enjoyed. No medical evidence challenging the opinions of these doctors was advanced by either defendant. All three doctors confirmed that the deterioration of her knees has caused her substantial pain and that her knees stiffen up if she sits too long. Marjory said she could sit for only one to one and a half hours before needing to move around to relieve knee stiffness and pain.

[70] I accept Marjory's evidence that she continues to experience more or less constant pain in both knees. The continuing presence of this pain is confirmed by the medical evidence of all three doctors, but in particular by Dr. Jaroszynski whose evidence shows that there is a physiological cause to Marjory's pain which is itself directly traceable to the fractured femur she suffered on November 8, 2002. I find that the accelerated osteoarthritis in first her right knee and then her left arises out of the strain and excess usage caused to those joints in the aftermath of the fracture and its surgical repair. That arthritis is directly traceable to the fractured femur Marjory suffered in the November 8, 2002 slip and fall accident.

[71] With respect to her other medical issues, I accept the evidence of both Mrs. Cartner and Dr. Holmes that her vision was not causing her significant problems prior to the accident. As such, I find no basis here to make a finding of contributory negligence. Marjory should not be blamed for not seeing the pooling concrete slurry on the sidewalk on the morning of the accident. She was walking a route she knew and had walked before, and she was talking to Monika. There was no reason for her to be scouring the sidewalk with her vision as she walked looking for traps. Moreover, the evidence established that there was no material difference between the sidewalk colour and the colour of the wet slurry that would have caught Marjory's eye and caused her to exercise greater caution.

[72] However, while I find that her vision did not have a reasonable impact on how she saw that sidewalk that day, looking forward I do find that her continuing deteriorating vision would have had some impact in future on the likely period during which she would have been able to continue to work. It was evident to me from her evidence, and that of Dr. Holmes and Dr. Lindsay, that her declining vision has been a problem of increasing importance in the years that have passed since the accident. Inevitably, I have concluded that all of these medical issues together, that is her diabetes and its spin-off effects, including issues of renal failure and the mini-stroke she has experienced since 2002, combined with her declining vision, and the effects of numerous surgeries, would have had an impact on the likely duration of Marjory's working life. I have taken that into account below in my assessment of her future income loss.

4) Damages of Mrs. Cartner and David Cartner:

(a) What are Mrs. Cartner's damages for pain and suffering?

[73] The position of the plaintiffs is that they have experienced pain, suffering and significant loss of enjoyment of life, individually and collectively. For this they seek significant damages. Plaintiffs' counsel suggests that "a fair assessment" of general damages for Marjory would be in the range of \$150,000, and that *Family Law Act* damages in the range of \$22,500 should be payable in the case of David Cartner. The defendant City of Burlington submitted on the basis of a number of cases cited in its book of authorities, cases similar in their facts to this case, that a more appropriate range of damages, assuming liability were to be found, would be in the range of \$65,000 to \$75,000: see *Wood v. Brown* (1998), 1998 CarswellOnt 4960 (O.C.J. Gen Din.) at para. 26; *Lee v. Hunter* (1998), 1998 CarswellOnt 4529 (O.C.J. Gen Div.) at para. 9; *Bannon v. Thunder Bay (City)* (2002), 2002 CarswellOnt 2832 at para. 62; *Cole v. Deep River (Town)* (2003), 2003 CarswellOnt 677 at para. 112.

[74] Let me first say that I find without reservation that the plaintiff, Marjory Cartner, suffered a significant and severe injury to her left femur as a result of the slip and fall accident that occurred on Guelph Line on November 8, 2002. The fracture was complex requiring repair with screws, metal plates and wires. Her evidence established that she experienced significant pain and suffering as a result of the accident, that her rehabilitation was longer than hoped for and that it was laborious. More importantly, I find that as a direct consequence of the accident, she experienced a significant acceleration of osteoarthritis in her knees that has caused her enormous pain and disability of function that has required her to undergo one knee replacement surgery already and that will soon require two further separate surgeries to replace her left knee. While she did have some symptoms of osteoarthritis in her back prior to the accident, both she and Dr. Holmes confirmed that it had had no impact on her ability to function fully and normally prior to the accident.

[75] Moreover, the injuries Marjory Cartner sustained as a result of this accident have caused her to be physically incapable of continuing to earn her livelihood in the happy and satisfying manner she did before the accident, have curtailed in a material and emotionally debilitating way her capacity to engage in full familial relationships and to care for her husband, and have taken away her ability to enjoy the modest activities in life that were a source of so much of the pleasure that she and her husband shared together before the accident occurred.

[76] She can no longer manage her household and cook and care for her husband as she once did, she can no longer walk the dog, she can no longer ride public transit in confidence, she can no longer wander through the shopping malls as was her habit, and she and David can no longer actively participate in Saturday morning yard sales. Her self-confidence has been diminished, and having already been through the leg repair and right knee replacement surgeries, she faces the grim future of two surgeries to replace her

left knee, and the pain, discomfort, disability and lengthy period of rehabilitation that will necessarily follow. Marjory Cartner's life has been significantly altered as a result of the injury she suffered on November 8, 2002.

[77] I have taken account of the decisions noted above that were produced by defence counsel, but note that two of them are five years old and two were decided 10 years ago. Further, unlike in those cases, here the plaintiff still faces the future pain and disability of further surgeries, and yet no further future award can be made. Mrs Cartner can make no future claim. She can only recover now in this award for past, present and anticipated future pain, suffering and loss of enjoyment of life. Thus I consider the awards made in those cases to be somewhat dated, and factually inadequate. Nevertheless, they do provide some guidance to me as to an appropriate award in this case. That guidance tells me that the range of general damages suggested by the plaintiff is modestly excessive. A reasonable assessment of non-pecuniary general damages for pain, suffering and loss of enjoyment of life in the particular circumstances of this case is \$120,000.

(b) What are David Cartner's damages under the *Family Law Act*?

[78] Under Part VI of the *Family Law Act*, R.S.O. 1990, c. F.3 as amended, section 61 and following, David Cartner is given a statutory right to recover damages under a number of heads but the only one applicable here is subsection 2(f), "to compensate for the loss of guidance, care and companionship that [David] might reasonably have expected to receive from [Marjory] had the accident not occurred".

[79] On the authority of several cases cited in its book of authorities, counsel for the defendant City argues that the *Family Law Act* statutory damages payable to David Cartner should not exceed \$5,000: *Milnes v. Burlington (City)* (2004), 2004 CarswellOnt 1338 (S.C.J.O.); *Warnes v. Rooney* (2002), 2002 CarswellOnt 2572 (S.C.J.O.); *Dusk v. Malone* (1999), 1999 CarswellOnt 3312 (S.C.J.O.). However, there is little guidance in

the summaries provided by counsel as to the reasons that caused the courts in those cases to award only that amount, and I note from one other case cited by the City that larger awards may be found to be appropriate: see *Cole v. Deep River*, above, at para. 112 where Power J. would have assessed the *Family Law Act* claim of Mr. Cole at \$15,000 had he not dismissed the action for the failure of the plaintiffs to prove that the municipality breached its statutory duty of repair.

[80] Here, however, counsel for the plaintiffs argues that Marjory's accident has affected David Cartner's life permanently, both in the short term and in the long run. While he was not injured in the fall, his life is forever changed as a result of it. There was evidence I accept from David's co-worker Fred Kussinger respecting the strain that David had to bear, and that he continues to bear, as a result of Marjory's accident and the additional burdens it imposed upon him. In the period immediately following the accident, and for much of the first year thereafter, David had to take on principal responsibility for every aspect of their lives, including cooking, cleaning, and attending to Marjory's personal care, on top of commuting for about two hours each day to and from his place of employment in Concord. While Marjory is now better able to again assume some of those responsibilities, their lives will never revert to the roles they played in their marriage and lives together before the accident.

[81] Perhaps of even greater importance, however, is that the "Marjory" with whom David continues to live is no longer the same "Marjory", the same woman as she was prior to the accident. He must bear with her the impacts of that accident on so many other aspects of their lives. He no longer does the same social activities and is no longer active in the community because of Marjory. He and Marjory no longer socialize with their friends the way they once did. They can no longer share the simple pleasures that they once enjoyed together, such as searching for "finds" at Saturday morning yard sales, because Marjory can not stand for long, so she stays in the car while David rummages.

[82] Moreover, even when they undertake these activities to the limited extent they are able to, there is the constant reminder that Marjory is no longer the active person she once was, and that she never will be again. Even visitations with the members of their family have become less frequent and more difficult because of the residual difficulties Marjory bears. Further, David also will have to bear the future burden of again fully caring for Marjory after the two surgeries she must still endure. To my mind, these are significant burdens to bear. David Cartner is entitled to be properly compensated for them. In my view, in the circumstances of this case, a reasonable assessment of damages due to David Cartner for his *Family Law Act* claim is \$20,000.

(c) What is Mrs. Cartner's loss for past and future income earning capacity?

[83] Apart from her own evidence, the principal evidence concerning Mrs. Cartner's past and future income loss came from Mr. Andy James, an accountant at the firm of Durward Jones & Barkwell. Ninety percent of his practice involves investigative accounting, largely focussed on income determination and business valuation. He was hired by plaintiffs' counsel to provide expert advice to the Court on past and future income loss quantification and he was accepted by the Court as an expert in forensic accounting.

[84] In preparing his expert's report, Mr. James received information from Denninger's concerning Mrs. Cartner's employment. He also took account of her tax information and Dr. Jaroszynski's report. His evidence helped the Court to understand what Mrs. Cartner's income would have been after the accident had she not been injured.

[85] In formulating his opinion, Mr. James took into account that Marjory worked a normal week of 37 to 40 hours, some weeks more and some less. It was typical for overtime hours to be worked in the busy Christmas season, although Denninger's did not pay their employees for overtime. Denninger's also appear to have provided their

employees with only limited employment benefits, but Marjory was able to obtain supplemental benefits under her husband David Cartner's plan from his employment.

[86] Mr. James determined that Marjory's employment income was \$21,187 for 1999, \$22,683 for 2000, \$24,361 for 2001, and \$22,202 for 2002. From these figures, Mr. James testified and I find that Marjory Cartner's inflation adjusted annual average earnings from 1999 to 2002 was \$24,390. Based on this calculation, Mr. James determined that Marjory's past income loss from November 9, 2002 to October 15, 2007 totalled \$123,959, net of other employment income and/or other sources of income.

[87] Mr. James also prepared two schedules of future income loss which were introduced as Exhibits 23 and 24. In these schedules, Mr. James calculated what Marjory's income would have been had she retired on her 63rd birthday and earned no further employment income from the date of trial to that date. The significance of the future income loss being calculated to her 63rd birthday related to Marjory's evidence that she hoped that she would have been able to work until that time. Unlike many future loss projections where the injured party claims an intention to work to age 65, Marjory was forthright that she did not actually intend to work to that age, but rather only until her 63rd birthday.

[88] In projecting future income losses, Mr. James factored in contingencies. As reflected in his present value calculations, these contingencies caused Marjory's retirement age to reduce from 63 years down to a retirement age of 61.5. In the first scenario of calculations, he assumed that Marjory would work full-time, and in the second he assumed part-time work. In the part-time scenario, Mr. James assumed that Marjory would be forced to retire at age 60, notwithstanding her stated preference to retire at 63.

[89] In the full-time employment scenario, if Marjory retired on her 63rd birthday and had no further employment income from the trial date until that birthday, her future loss would have amounted to \$97,136. In contrast, if Marjory had been able to work half-time from May 2008 to her 60th birthday instead of her 63rd birthday, her future loss would be \$76,189. Based upon these calculations, Mr. James determined and testified that Marjory's total past and future income loss if she did not work at all from the date of the accident to age 63, other than for her temporary return to work in May and June 2003, would amount to \$221,095. In contrast, if Marjory were to work on a part-time basis from May 2008 to age 60, her total loss amounts to \$200,148. Both of these amounts are exclusive of post-judgment interest.

[90] Mr. James acknowledged that the amounts would change significantly if it were assumed that Marjory would have retired at age 60 rather than 63. In that case, her part-time future income loss would have been \$35,428 instead of \$76,189, and on the full-time employment scenario her future loss would have been \$56,797 instead of \$97,136. As such, on a part-time basis, her past and future income loss would have amounted to \$159,387 instead of \$200,148, and on a full-time basis, the aggregate loss would have amounted to \$180,756 rather than \$221,095. When challenged on his assumption that it was appropriate to calculate her past income loss for the full five-year period from 2002 to the date of trial, rather than assuming Marjory could have returned to work full-time by the second year after the accident, Mr. James testified that he did not believe, based on his review of Dr. Jaroszynski's report, that she could have returned to work after two years.

[91] The other expert who testified respecting Mrs. Cartner's past and future income loss was Dr. James E. Pesando. Dr. Pesando is a professor at the University of Toronto, and he holds a doctoral degree in economics from that University. He was accepted as an expert on issues of pension and retirement, and trends in retirement age. He was retained

by the City of Burlington to challenge Mr. James's report and he confirmed that following his retainer he reviewed Mr. James's report and its underlying assumptions. Based on his research and experience in pension related matters, and Government of Canada surveys relating to the behaviour of Canadians, Dr. Pesando testified that the average retirement age for Canadian women is actually 60 rather than 65. It was his opinion that an assumed retirement age for the plaintiff of 63 years of age, rather than 60, should only be accepted by this Court in the presence of persuasive evidence.

[92] When challenged on the foundation for his opinions, Dr. Pesando did not agree that Canadians are now working longer than they once did. Nevertheless, in apparent contradiction of his own evidence, he said that the evidence shows that half of Canadian women will actually work past their 60th birthday, while half will retire before age 60. However, he confirmed that married women tend to retire earlier, and that a medical condition could affect the time of retirement. Nevertheless, he acknowledged that there are many skilled older persons who want to continue to work. Most importantly here, he also confirmed that the calculations prepared by Mr. James appeared quite fair based on the assumptions that Mr. James used as the foundation for his work.

[93] The decision of the Court of Appeal in *Schrump v. Koot* (1977), 16 O.R. (2d) 337 establishes that an injured party does not need to prove that future loss or damage will occur in order to receive an award. They need only persuade the Court that there is a reasonable chance of such loss or damage occurring in the future. Speculative or fanciful possibilities or projections are not to be entertained, but substantial possibilities based on expert or cogent evidence must be considered by the Court. Regardless of the percentage of possibility that such damage will arise, it is to be considered and evaluated as long as it is a substantial possibility. As a result, necessarily the burden of proof is lower for a plaintiff under this head and it has been accepted that a degree of arbitrariness will

inevitably be needed in assessments of future loss: *Stitzinger v. Imperial Life Assurance Co. of Canada* (1998), 39 O.R. (3d) 566 (Gen. Div.).

[94] Here, Mrs. Cartner was fully employed at the time of the accident. Every indication before the Court suggests that she would have continued to work at Denninger's for a good many years, apart from the toll that her other medical afflictions might ultimately have had on her income earning ability. In this case, even though Dr. Pesando's evidence is based on his scholarly work and extensive experience dealing with the likely retirement ages of Canadians based on trends and Canadian government statistics, I accept the evidence of the plaintiff that it was her intention to work until her 63rd birthday.

[95] I found the plaintiff to be forthright and honest in her evidence, and her stated intent to work to age 63 was entirely consistent not only with her own evidence of how pleasurable and rewarding she found her work to be, but also the third party evidence that she was a diligent worker, very popular amongst fellow workers, and that she made a positive contribution through her work to her employer's prosperity. There was no evidence that her employer did not value her or that it had any plan to terminate her employment at any time in the foreseeable future. Further, Mrs. Cartner is a woman who loved her day-to-day interaction with the customers at Denninger's, and the evidence of Ms. Filipas confirmed from her own observations that the customers liked Marjory.

[96] Nevertheless, I also find that Marjory's medical afflictions would have had an impact on her ability to actually see that intention through to her 63rd birthday. The medical evidence establishes that her diabetes would have continued to be a factor, having an increasing bearing on her ability to continue to work. It is equally evident that her vision would have become an increasing problem for her given her acknowledged vision issues, and the deterioration that has occurred since 2002. While I accept that I am

required to give consideration to substantial possibilities, I have concluded that it is more likely that Marjory would not have stayed in full-time employment until she reached her 63rd birthday. Instead, I believe and find that she would have reached a point as she progressed through her late 50's when she would have sought part-time employment from Denninger's for her final years rather than continuing in full-time employment.

[97] I believe that there would have been a substantial possibility that her employer would have been happy to permit her to move to a part-time work regime, given her obvious strengths as a worker, rather than forcing her into early retirement. I also believe and find that her continuing medical problems would have caused her to retire by the time she reached her 61st birthday, and would not have permitted her physically to continue on until she was 63.

[98] On this basis, I find that Marjory's employment earnings loss could not reasonably have been expected to reach the \$221,095 loss that was projected had she worked full-time to age 63. However, I have also concluded that her future income loss cannot be calculated on the simple basis that her entire working life after the accident would have been on a part-time basis only. For these reasons, I have concluded and find that a fair assessment of her past and future income loss must assume both full and part-time employment to age 61. On this basis, extrapolating from the calculations prepared by Mr. James, I fix the quantum of that loss at \$190,000, exclusive of post-judgment interest. However, for the reasons that follow, I have also concluded that Mrs. Cartner's past and future income loss must be reduced by 10% in recognition of the fact that once her work at Denninger's actually came to an end in late May 2003, and in spite of the recommendation of her family doctor that she seek out sedentary substitute positions, that she did not make any effort to do so. Consequently, after applying a discount of 10% on this basis, I fix her past and future income loss at \$171,000, exclusive of interest.

(d) Did Mrs. Cartner mitigate her damages?

[99] Under our law, the reasonableness of a plaintiff's efforts to mitigate their losses is a factual one that falls to be determined by me as the trier of fact. While the plaintiff has the onus of establishing that they suffered damage and the quantum of that damage, once they have done so it falls to the defence to establish any culpable failure to mitigate on the part of the plaintiff. However, an injured party is not to have a critical standard of review applied to their conduct to determine if they have mitigated their damage so long as they are pursuing recommended courses of treatment: see *Janiak v. Ippolito*, [1985] 1 S.C.R. 146. In the field of personal injuries, the plaintiff has an obligation to mitigate damages by taking reasonable steps towards medical treatment and rehabilitation, judged not against a standard of perfection, but relative to what a reasonable person would do in the circumstances: see *Bannon v. Thunder Bay (City)* (2002), 2002 CarswellOnt 3733 (Ont. S.C.) per Kozak J. at para. 54 and cases cited there.

[100] In this case, there are two aspects of mitigation, the first related to Marjory's efforts to follow her physicians' advice and to take reasonable steps to rehabilitate herself, and the second relating to her efforts to return to remunerative employment.

[101] On the first aspect, I find that Marjory undertook all rehabilitation and medical treatment recommended by her physicians and in that respect, I accept she made all efforts that could be expected of her to mitigate the physical aspects of her injury. In spite of these efforts, she continues to experience pain and residual disability. As such, there is no basis to reduce the award of general damages to which she is entitled on account of failure to mitigate. The second aspect, however, relating to her efforts to obtain new remunerative employment following the accident is less favourable from her perspective.

[102] Marjory testified that she had hoped to return to work at Denninger's in March of 2003, five months after the accident occurred, but that her condition did not permit her to return to work until May, 2003. She worked for a period of only one week until May 29, 2003 when she worked for a half-day but found she could not continue because of the pain she was experiencing. That was her last day of work at Denninger's. She testified that she could not stand for the time periods required to permit her once again to work as a cashier. Denninger's would not permit her to sit on a stool while working as a cashier. She testified that she tried out three different jobs at Denninger's over the brief period she returned to work there, but was physically unable to perform them satisfactorily.

[103] When questioned, Marjory acknowledged that she had not tried out other job arrangements. She claimed that her inability to drive meant that she could only get to a job if she took the bus or her husband David drove her and picked her up, and following the accident, she was no longer confident traveling by public transit. She claimed she was simply unable to stand for any protracted period of time due to the pain standing caused her to experience. She also confirmed that she did not apply for jobs after she and David moved to Barrie in late 2003. While she acknowledged that Dr. Holmes had suggested to her in June 2003, just after she left Denninger's, that she could get a sitting job, Marjory testified that she could not do that because her pain level was too high.

[104] I accept Mrs. Cartner's evidence that she was unable to continue with the job she previously had occupied at Denninger's after the accident due to the level of pain she was experiencing. I also accept that Marjory was experiencing a significant level of pain for most of the day associated with the rapid onset arthritis in her knees that appears to have been accelerated by the broken left femur she suffered in the slip and fall accident, and the significant weight bearing strain that was imposed on her knees following that incident. However, it was also evident to me that Marjory's spirits appeared to have been broken by her experience in the aftermath of the accident. Before the accident, she was

an energetic and active person, a fact confirmed by the evidence of her co-worker, Zdenka Filipas, and her husband David Cartner. After the accident, however, little tasks seemed to assume much more monumental proportions for her. Even though Dr. Holmes suggested to her that she could try to seek out a sitting job, and even though it is acknowledged that she couldn't sit for uninterrupted periods of time of more than one and a half hours, she did not do so, if only to determine with greater certainty whether there were other new positions she could occupy that would provide her with remuneration.

[105] Given that Marjory had limited education, that she had few if any transferable skills, and that she did not drive and could only get to work if driven or by public transit, it is not surprising to me, apart from the pain she was obviously experiencing, that she might have found the prospect of securing new employment that she was physically capable of performing to be a daunting prospect. This is a sentiment that I understand, but it cannot fully overcome my own observations that she was also a person who appeared to have low confidence in herself and who displayed little evidence in her testimony of having any real interest in finding a new position when she could no longer work at Denninger's. This also is perhaps not surprising given how much she enjoyed her job at Denninger's, how much of a contribution she appears to have made there and the numerous friendships she had forged over the 12 years she worked there. Nevertheless, the fact remains that even when encouraged to do so by her family doctor, a person who knew her and all of her health afflictions well, she did not seek out any other jobs at all, much less purely sedentary jobs as Dr. Holmes had recommended. My inescapable conclusion is that after being forced to accept that she could no longer work at Denninger's, Marjory simply had no interest in obtaining any other employment, and effectively made up her mind that she could not physically go back to work in some other kind of employment, even though she did not actually go through the exercise of trying.

[106] I accept, and am satisfied here, that there were likely very limited sedentary future job prospects for Marjory at 52 or 53 years of age following the accident, taking account of her pain levels and the difficulties she obviously experienced getting about. On this basis, I conclude that there was very little Marjory could likely have done to mitigate her damages and reduce her likely future income loss. Further I accept the proposition that this Court ought not to apply an excessively critical standard of review to her conduct. Nevertheless, the fact remains that every plaintiff has an obligation, in the absence of evidence of physical inability to do so, to try to seek out opportunities that will reduce future losses on account of income expectancy. At a minimum, a plaintiff is expected to pursue recommended courses of treatment. There is no doubt that her doctor's advice would prevent her from being expected to find other employment that would be physically demanding on her, or that would require that the pain she experienced standing be exacerbated. However, it was at least open to Marjory, and recommended to her, that she explore other opportunities, limited though they may have been. Here, I find that Marjory did not explore those opportunities. She did not even go so far as to investigate what the opportunities for sedentary work might be. It may well be that had she investigated, she would have found either that there were few if any such positions available, or she might have found that even those sedentary employment positions demanded more of her than she could offer. We do not know the answer to those questions, because Marjory made the conscious decision not to return to any kind of work.

[107] As a result, I find that Marjory did not meet her obligation to mitigate her future income loss, and that failure on her part must inevitably factor into my determination of the amount of compensable income loss she has sustained and for which the defendants may be liable. In the result, bearing in mind my expectation that there would have been only limited jobs of a sedentary nature that Marjory could have undertaken, given her age

and bearing in mind that even these might not have been successful given her evidence that I accept regarding pain in sitting positions, I have determined that her income losses otherwise determined must be reduced by 10% in recognition of her failure to take all reasonable steps to mitigate those damages. This discount is reflected in the award noted above.

(e) OHIP subrogated claim:

[108] Beyond their personal claims, the plaintiffs have an obligation to make a claim for OHIP's subrogated interest relative to the medical services received by Mrs. Cartner to date. In addition, however, they claim for the anticipated future cost of Mrs. Cartner's future knee replacement surgery. Counsel for the defendants does not quibble with the past loss claim, but asserted, albeit without much force, that there is no certainty here that Marjory Cartner will need to undergo two further surgeries to permit her right knee to be replaced. This is a contention I reject on the basis of the clear and persuasive medical evidence of Dr. Jaroszynski, in particular, that there is no doubt that Mrs. Cartner will need to undergo those surgical procedures.

[109] In the plaintiff's OHIP subrogation brief filed with the Court, correspondence from OHIP, including two OHIP subrogation payment summaries, dated January 29, 2004 and August 16, 2007, establishes that the past loss under this head of special damage is \$14,064.01. However, October 3, 2007 correspondence from the Ministry of Health also establishes that if the future knee replacement is a certainty, or even a probability, and resulted from the November 8, 2002 injuries, then the Ministry would have a claim for that future medical service. Based on the surgery costs of July 28, 2006, it is expected that the Ministry would have a claim for the future knee replacement in the amount of \$5,000 to cover all associated pre and post insured expenses.

[110] As a result, and having regard to my finding that the future surgeries are not merely a probability, but indeed a certainty, I find that the aggregate OHIP subrogated interest claim properly allowable is \$19,064.01, plus interest and costs. Of this amount, to the date of trial, the past loss component of \$14,064.01 had accumulated interest of \$3,508.30. Accordingly, I award special damages in respect of the OHIP subrogated interest of \$19,064.01, together with pre and post judgment interest on the past loss component of \$14,064.01 and costs with respect thereto.

Liability of the Defendant's Wang and Huang:

[111] The plaintiffs claim here that the Defendants Feng Feng Wang and Ying Jai Huang permitted concrete slurry to escape from their property onto the sidewalk and that they were negligent or created a nuisance in doing so. As a result of that negligence and/or the creation of that nuisance, they claim that these defendants caused Marjory Cartner's injury and are liable. The defendant Mr. Wang denies that he was negligent, that he created a nuisance or that the slurry even originated from his property. The position of Ying Jai Huang could not be known, in spite of the fact that she co-owned the Crystal Shoes property at the time of the accident because she did not even attend, much less participate or testify at these proceedings.

1) Framework of analysis:

[112] Nuisance, in the sense in which it is used here, can be defined as an interference of an indirect or consequential nature with the use of the land by the occupier: A.M. Linden, *Canadian Tort Law*, (11th ed.) at p.531. *Blacks Law Dictionary* (4th) describes nuisance as "that class of wrongs that arise from the unreasonable, unwarranted, or unlawful use by a person of his own property, either real or personal, working an obstruction or injury to the right of another or of the public, and producing such material annoyance, inconvenience, discomfort, or hurt, that the law will presume resulting damage."

[113] At common law, a property owner did not have a duty of care with respect to the public sidewalks adjacent to their property. However, there were two exceptions to this rule. The first was that a property owner might be deemed in law to be an occupier of an adjacent public property if the owner assumed control of that property. The second exception to the general principle that a property owner was responsible only for his or her property is that the duty of care on the owner extends to ensuring that conditions or activities on his or her property cannot flow off the property and cause injury to persons nearby: *Bongiardina v. York (Regional Municipality)* (2000), 49 O.R. (3d) 641 (C.A.). A good example of the principle can be found in the statement of the Court of Appeal, made in circumstances not dissimilar to those here, in *Brazzoni v. Timmons*, [1992] O.J. No. 254 (C.A.) at page 2:

The trial judge found that water flowed from the respondent's property across the sidewalk at the time the plaintiff fell. By allowing the water from melting snow, on the roof of its building and from its parking lot, to accumulate on its property and to run across the sidewalk, which was covered with snow and ice, the respondent, in our opinion, created a dangerous condition that it knew or ought to have known could cause injury to pedestrians using the sidewalk. Regardless of whether liability is based on nuisance or negligence, the respondent, in our opinion, is liable.

[114] Not all nuisances will be actionable, but a property owner can be held strictly responsible in nuisance for injuries caused by substances that flow from his or her property, as well as in negligence if the owner failed to ensure that his or her actions would not cause injury to others. At its essence, the tort of nuisance is established where the defendant creates a dangerous situation or fails to take reasonable steps to abate it when the defendant knew or ought to have known of its existence: see *Occupiers Liability Act*, R.S.O. 1990 c. O.2, subsections 3(1) and (2); *Simmons v. Etobicoke (City)*, 2002 27 M.P.L.R. (3d) 318 (Ont. S.C.); *Miller v. Kamloops (City)* (2003), 39 M.P.L.R. (3d) 295 (B.C.S.C.). Further, in cases where the performance of its public duties by a

municipality is not governed by a statute such as the *Municipal Act*, but rather by the common law, a municipality may also be found liable in nuisance. However, municipalities may also enjoy immunity from liability for nuisance where the offending activity was authorized by statute, and where the activity was necessary or an unavoidable consequence of the exercise by the municipality of its statutory authority: *Tock v. St. John's Metropolitan Area Bd.*, [1989] 2 S.C.R. 1181 (S.C.C.)

[115] On the basis of this law, the plaintiffs assert that if the defendants Feng Feng Wang and Ying Jai Huang are found to have allowed the concrete slurry to escape from the Crystal Shoes property, and to have caused a hazard on the adjacent sidewalk, then apart from and in addition to whether either or both of them may be found to have been negligent in their conduct, they are both strictly liable in nuisance for the injuries and damages that may result in their capacity as owners of that property.

2) Evidence and findings with respect to liability of Feng Feng Wang and Ying Jai Huang:

[116] Feng Feng Wang testified at trial with the assistance of an official interpreter. He and his wife, Ying Jai Huang, were the owners of the building located at 764 Guelph Line where the Crystal Shoes business was operated. He said he alone ran the business, and that his wife took no role in the business or the running of the building. She was merely an inactive co-owner, he said.

[117] Mr. Wang was shown many of the photographs that comprised Exhibit 38, and the other photographic exhibits. When shown Exhibit 38c, a close-up photograph of the sidewalk in relation to the Crystal Shoes driveway, Mr. Wang confirmed that the sidewalk slabs where the accident took place are located in front of both his property and the Speedy Muffler outlet, and that it is a distance of about 35 feet from the east side of the Crystal Shoes building to the west edge of the municipal sidewalk.

[118] Mr. Wang acknowledged that he did repair work on the concrete stoop at the front of the Crystal Shoes store in the fall of 2002. The stoop had been there since he acquired the building in November of 1999, but the surface was not flat, and there was damage where chunks of concrete had spalled off from the edges of the stoop. To repair it, he created a form by building two plywood retaining walls, one on each side of the concrete stoop, into which he poured fresh concrete. Exhibit 39 is a close-up photograph of the concrete stoop in front of Crystal Shoes with the wooden concrete framing forms in place, one on the south side of the step, and one on its east side. Mr. Wang put in reinforcing bar to provide additional strength to the sidewalk edges, mixed the cement in a plastic barrel, and then put the new cement into the gap. Mr. Wang claimed that Exhibit 40 was the square plastic bucket that he used for the purposes of mixing the cement. Also tendered as an exhibit was Exhibit 41, a yellow plastic bucket, that at one time contained commercial grade “Quikrete” cement. Mr. Wang at first claimed to have bought 10 to 12 of these buckets of cement to do the job and he testified that this particular one was left over at the end of the job. Mr. Wang said that he performed the concrete repair work from October 18-20, 2002. This would mean that the work was completed at least 19 days before the accident took place.

[119] Mr. Wang was asked why he would have left the concrete forms in place if the work had been done that far ahead of the date of the accident. He said that the cement required 28 days in order to dry completely. He said he was worried that the edges would get damaged if he removed the forms prior to the 28th day.

[120] Mr. Wang claims to have noticed before the accident that water continuously accumulated on the three slabs of the sidewalk immediately south of his property line. On a rainy day, he said water would accumulate and on a dry day, there would be sand and dust located on those three slabs, a residue that he said resembled “old concrete

dust". This was the location where the concrete slurry on which Marjory Cartner slipped and fell had pooled prior to the accident.

[121] According to Mr. Wang, the municipality had performed grinding work on the sidewalk at the north edge of the three slabs and the "dust and sand" that he claimed accumulated there was a product of the City's work. He said a lot of dust had been left on his truck and cars, dust created by the grinding work. He could not recall the specific dates when that grinding work had been done by the municipality, but he was certain that it was soon before "the old lady fell".

[122] His intent was to blame the City for any accumulation of slurry. It was the City's fault, he said, and not the result of washing away the residue from the concrete repair work that he did to the front stoop of the Crystal Shoes store. He said that once rainwater mixed with it, the dust turned into concrete slurry and pooled on the three reverse slabs of the City's sidewalk located immediately south of his premises.

[123] Not surprisingly, Mr. Wang was vigorously cross-examined, both by counsel for the plaintiff and by counsel for the City of Burlington, and it was in the course of those cross-examinations that numerous contradictions, inconsistencies, and untruths from his evidence-in-chief became apparent. I do not intend to recall all of them here — it will suffice to recall three or four. In-chief, Mr. Wang testified that he alone ran the Crystal Shoes business. He said his wife had no involvement in it, but when confronted on cross-examination with the evidence that he had given at his discovery in 2005 that his wife did work at Crystal Shoes some days, he tried to explain that she only came occasionally to replace him at lunch hour. He refused to answer further questions on that subject.

[124] Mr. Wang was also caught with the unbelievable denial that there could possibly have been any concrete residue left on the front driveway of his property on the day of

the accident, notwithstanding the photographic exhibits taken by David Cartner only a couple of hours after the accident occurred. Those photographs showed the forms still in place and a great deal of concrete residue flowing in an easterly direction from the front stoop of Crystal Shoes to the City's sidewalk.

[125] Mr. Wang specifically denied that the concrete slurry substance on the sidewalk had originated from his repair job, although he acknowledged that it was not created by his neighbour, the Speedy Muffler franchise, or his tenant, the Tattoo Parlour, or the Pioneer Gas Station that was his neighbour to the north. Rather, he said that the concrete slurry came from concrete repair work done on the sidewalk by the City of Burlington itself. Given that his counsel made no opening statement that might commit him to a particular position, and that this allegation is not made in his pleadings, it was evident that this possibility could only have come to him from having heard the evidence of Mr. Pedersen, the plaintiffs' expert engineer.

[126] Mr. Pedersen testified that the northern edge of the three slabs of sidewalk south of the Crystal Shoes property had been ground down by the City to repair a trip ledge problem sometime between 1999 and 2002. I address this trip ledge issue in greater detail in my review below of the evidence that pertains to liability of the City. What was interesting to me here, however, was that this theory of his defence originated during the trial. Even more curious from that perspective was that Mr. Wang claimed to need the assistance of an interpreter in order to give his evidence. However, when he recounted in cross-examination what Mr. Pedersen had said, it was virtually verbatim and yet that testimony had not been translated for Mr. Wang's linguistic benefit. I have no doubt that his understanding of English was better than he wished it to appear.

[127] Mr. Wang had no explanation for the different testimony he had previously given on discovery as to the time frame within which the concrete repair work was done to the

front stoop of Crystal Shoes. On one occasion, he said the work was done between October 2 and 3, 2002, but he also said that he had started the work about September 8th, and finished it about the end of October. He must have realized that he needed to change his testimony from what he had said at discovery to show that the bulk of the work was done between October 17th and 20th. Otherwise there would have been no excuse to explain the continuing presence of the concrete forms surrounding the front stoop at Crystal Shoes on the day of the accident, even if he had permitted the cement to dry for the allegedly prescribed 28 days. As well, this evidence seriously called his pleadings into question, since Mr. Wang stated in paragraph 7 of his statement of defence that he had removed the wooden concrete retaining forms from the stoop in front of Crystal Shoes the day before the accident occurred. Obviously this also was a contention that could not be true in light of the presence of those forms in the photographs taken by David Cartner the next day, two hours after the accident occurred.

[128] The most astonishing incredulity of his testimony, however, and that revealed the full extent to which his evidence was contrived and made up as he went along and as he heard the evidence of other witnesses, related to the yellow concrete bucket. Initially, in his examination in-chief, Mr. Wang said that he had purchased 10 to 12 yellow buckets of cement and that one had been left over after the job was completed. In cross-examination, he contradicted that evidence and said that the cement that he used to do the repair work in 2002 did not come in buckets, but had been packaged in bags (bags of cement can be seen in the box in photographic Exhibit B-3). He agreed that he had said nothing about the cement having come in bags in his examination-in-chief. However, he said that he still had a little bit of cement left from the yellow buckets.

[129] Mr. Wang testified that he had kept that specific plastic bucket for five years, and indeed, he claimed it was the very bucket that he had brought in and provided to his

counsel at the end of his testimony in-chief on the previous Thursday, and that was introduced as Exhibit 41 at the trial.

[130] However, there was considerable confusion about just which bucket he had provided to his counsel the prior week when he continued his testimony the following Tuesday. This problem arose because on visual examination it was apparent that Exhibit 41, the bucket that Mr. Wang claimed he used in 2002, had a manufacturers product date and bar code of 2006 printed right on the bucket. Mr. Wang could not have had that bucket in 2002. It did not exist in 2002.

[131] Mr. Wang tried to bob and weave his way through these inconsistencies and contradictions, claiming that the problem resulted from his close friend, Mr. Wong Ho Chung, going into his garage and taking the “right” bucket the weekend before, unbeknownst to Mr. Wang. He said Mr. Chung was a very close friend with whom he discussed the concrete repairs. He said that Mr. Chung would come to testify concerning the mix-up with the yellow buckets. Yet Mr. Chung did not come to court, and even Mr. Wang’s own daughter, who created a misleading weather report from historical internet data for the days preceding the accident at her father’s instigation, said she had never heard of Mr. Wong Ho Chung. She had never heard of her father having a friend by that name.

[132] Finally, when confronted by counsel for the City, Mr. Wang admitted that it was correct that he was raising a new defence at trial that the concrete slurry resulted from the city's grinding work. He said that he had never read his statement of defence. When confronted with paragraph 8 of his statement of defence that says nothing about any substance having been on the sidewalk as a result of actions of the City, he said that he did not know where that paragraph had come from. He insisted that the old concrete dust and sand had “been there for a long time”. He advanced this new defence even though he

said at discovery he had no intention of changing his defence to the Cartner's claims. He continued to insist in cross-examination that even if that grinding work had been done by the City three months, or even three years before the November 8 accident, there would still have been "concrete dust" present on the sidewalk that could turn into the muddy slurry if water were added. He went so far as to cause his daughter to "create" new evidence of rainy weather conditions in the days preceding the accident. However, there was no credibility either to this position, or the trumped up weather report effectively manufactured by his daughter to support his contention that the slurry was caused by the interaction of rain water with the "concrete dust" left from the City's alleged recent grinding work, this in the face of the testimony of other witnesses that it had not rained for at least two days before the accident occurred.

[133] There was no air of reality either to these answers that he gave or much else of Mr. Wang's evidence. He gave astonishing answers to many of the questions he was asked. I found his evidence to be largely contrived, internally contradictory, and "cooked up" to avoid liability for his actions. He was caught on numerous occasions with having created unbelievable fabrications. I found him to be evasive in many of his answers. He would frequently rephrase a question into a form that he was willing to answer because it had been twisted by him to a slant that he preferred. He was at times visibly cavalier and indifferent to whether he was telling the truth.

[134] For all of these reasons, I accept the submissions of the plaintiffs, and the City of Burlington, that he was neither a truthful nor a reliable witness, and I have largely discounted his testimony. Fortunately there was reliable and credible evidence that was introduced at this trial that does permit me to determine what did actually happen. That evidence consists of the numerous photographs taken by David Cartner shortly after the accident, his testimony of what he observed, and the testimony of Mr. Richard Bretton.

[135] Mr. Bretton was the manager at Speedy Muffler located next door to Crystal Shoes in November 2002 when the accident occurred. He knew Mr. Wang by appearance and name, and had many conversations with him. On the day of the accident, he and one of his employees came to Marjory's rescue when she fell on the sidewalk in front of Speedy Muffler. After Marjory was taken to the hospital by ambulance, they noticed the presence on the sidewalk of a gray mud-like substance. They looked for the origin of the substance on which Marjory appeared to have fallen. Viewing the situation with his own eyes, he concluded the slurry had come from the stoop area in front of the Crystal Shoes store. Mr. Bretton observed that the slurry appeared to have flowed down the Crystal Shoes driveway from the corner of the stoop, underneath the step-van truck that was parked at the south edge of the Crystal Shoes property, and then out onto the sidewalk where the flow of the substance changed direction. Once the flow of muddy slurry reached the sidewalk it turned right, flowed down the short grade on the northern slab caused by the City's sidewalk grinding work, and pooled on the three reverse sloped sidewalk slabs located immediately south of the Crystal Shoes property line. It was on those slabs that Marjory fell.

[136] As manager, Mr. Bretton spent much of his day moving cars in and out of the Speedy Muffler service bays. He would observe activity going on around the garage. Frequently, because of where cars were parked on the north side of his lot, he would look directly at the Crystal Shoes property as he jockeyed the cars around. In the three to six days prior to the accident, Mr. Bretton saw Mr. Wang doing cement repair work on his property. He observed Mr. Wang hosing down the driveway of the Crystal Shoes property before the accident and he identified on photographic Exhibit B-2 the location where Mr. Wang stood as he hosed the concrete residue off his property and toward the sidewalk, using a garden hose. At trial he was not certain about the specific date on which he had witnessed these events take place. However, he observed that the muddy

trail that flowed down the neighbouring driveway at Crystal Shoes toward the street was quite large. He confirmed that once it reached the sidewalk it accumulated and pooled in the low spots on the sidewalk. Mr. Bretton was credible, direct and straightforward in the evidence he provided.

[137] His observations were confirmed by David Cartner under cross-examination. He also saw the flow of the slurry underneath the truck. He saw where it had reached the sidewalk and changed direction, and where it pooled on the three sidewalk slabs immediately south of the Crystal Shoes property. The slurry was not in “running” liquid form when he saw it, but he could see the path it had followed when it was. Mr. Cartner also specifically recalled talking to Richard Bretton in the hours following the accident and being told at the time that Mr. Wang had washed the concrete residue off his property on November 7th, the day before the accident, even though Mr. Bretton did not recall that specific date when he testified.

[138] Mr. Cartner testified on the numerous photographic exhibits present at trial. Exhibit B-12 showed the reversed three slabs of the sidewalk, as well as the southern and then eastern flow of the concrete slurry down the three slabs and out towards the street. When the concrete was flushed off of Mr. Wang's property, the level of liquid in the pooled area of the three reverse slope slabs must have been high enough to permit the slurry to actually flood onto the grass in front of Speedy Muffler from the adjacent sidewalk because that photograph showed residue of concrete slurry on the grass to the immediate west of the three slabs. Photographic Exhibit A-3, a photograph of the edge of the sidewalk slab immediately north of the three reverse slabs with a red arrow painted on the sidewalk edge, showed the ground down edge extending about seven to 8 inches towards the street to the east and along the edge of that sidewalk slab. It was at this precise point that the flow of concrete slurry coming from Mr. Wang's property changed its direction and started to accumulate on the three concrete slabs to the immediate south.

The photographs show that those are the three slabs with a reverse slope as compared to the rest of the sidewalk, and show the remaining pooled concrete slurry on which Marjory Cartner slipped and fell, and the imprint caused by the sliding of her shoe as she went down.

[139] His counsel put forward a complex theory to explain Mr. Wang's contention that the concrete slurry on which Mrs. Cartner slipped and fell was caused by the City of Burlington, and that it is exclusively liable for her injuries. That theory involved the City having done grinding work on the edge of the sidewalk slabs some time before the accident, having left behind dry concrete dust residue, and the slurry having formed when mixed with rainwater that allegedly fell in the day or so immediately prior to the accident. However, this ingenious line of argument advanced by counsel for these defendants had no foundation to it when examined in light of the evidence.

[140] I find that there was a much simpler explanation for the accumulation of concrete slurry on which Marjory Cartner slipped and fell than that put forward by Mr. Wang. That explanation was evident in the fact that the concrete retaining forms were still present on the day of the accident, and that photographs taken the same day establish definitively that the source of the concrete slurry was the Crystal Shoes property. The concrete forms may have been erected a week or more before the accident, but I find that the actual concrete repair work was done by Mr. Wang either late on November 6th or on November 7th. There may have been concrete dust that was created when the City did grinding work on the southern edge of the sidewalk slab immediately north of the three reversed sloping slabs, but I find that dust, if it ever existed, had long since been disbursed on the winds by the forces of nature. There was no concrete dust on November 6th or 7th remaining from the City's work that could become concrete slurry, and there was no rainwater that fell during the two preceding days that could have provided the liquid element needed to cause concrete dust to become concrete slurry. The obvious and

evident source of the concrete slurry was Mr. Wang's property, and I find that it was Mr. Wang's use of a hose to wash the concrete residue off of his property and onto the City's sidewalk on the afternoon of November 7th that created the concrete slurry which pooled on the City's sidewalk, and on which Marjory slipped and fell early on November 8th.

[141] Feng Feng Wang is liable in negligence to the plaintiffs Marjory Cartner and David Cartner because he owed a duty of care to prevent injury to those using the sidewalk from substances emanating from his property. He knew or ought to have known that his actions in moving the concrete slurry material from his property onto the sidewalk, or permitting it to move onto the sidewalk, caused a hazard to exist on that sidewalk that could cause injury to others. I also find that Feng Feng Wang is strictly liable in nuisance to the plaintiffs, as one of the owners of the Crystal Shoes property, for having allowed the concrete slurry to escape from his property. I make this finding apart from and in addition to finding him liable in negligence for his conduct and the injuries and damages caused by that conduct. The accident would not have occurred but for those actions on his part.

[142] But what of the liability of Ying Jai Huang, his wife and the co-owner of the Crystal Shoes property? We do not know with certainty what involvement she had in these events, because she chose not to attend or testify at these proceedings, and Mr. Wang largely refused to answer questions relating to her.

[143] In the absence of an explanation, the Court can draw an unfavourable inference when a defendant like Ms. Huang does not testify, or from the failure of the defence to call a witness who would have knowledge of the facts and would be assumed to be willing to assist that party. The failure of Ms. Huang to testify or of the defence to call her, or indeed Mr. Chung, as material witnesses, amounts to an implied admission that the evidence of those absent witnesses would be contrary to its case, or at least would not

support it: see Sopinka J., S. Lederman and A. Bryant, *The Law of Evidence in Canada* (2nd ed.), (Toronto: Butterworths) at p. 297. In circumstances where a litigant or likely material witnesses like Ms. Huang or Mr. Chung do not testify, the Court must presume that such evidence would have adversely affected the defendant's case: *Johnston v. Murchison*, (1995) 127 Nfld. & P.E.I. R 1 (P.E.I.S.C. Appeal Division). This serves to indicate, as the most natural inference, that the defendants were afraid of what Ms. Huang's testimony would have been (and Mr. Chung's assuming he even exists) and this fear is some evidence that the witness, if brought, would have exposed facts unfavourable to these defendants. These inferences, to be sure, cannot fairly be made except upon certain conditions, and they are also open always to explanation by circumstances which make some other hypothesis a more natural one of the party's fear of exposure, but there is no doubt of the propriety of such an inference in general: *Murray v. Saskatoon*, [1952] 2 D.L.R. 499.

[144] It is appropriate that such adverse inferences be made in this case. It is undisputed that Ying Jai Huang was the co-owner of the Crystal Shoes property with Feng Feng Wang. I find that Ying Jai Huang was involved in the Crystal Shoes business, and find on a balance of probabilities that she would have been aware of the repairs being made to the stoop outside of the Crystal Shoes store by her husband, and that she was also aware of Mr. Wang's efforts to wash the concrete residue off of his property.

[145] As owner of the property, along with Mr. Wang, she must share in his strict liability in nuisance for having permitted concrete slurry to escape from their property and creating a condition of danger on the city sidewalk. As well, however, this is a case where an adverse inference must be drawn against her and against Feng Feng Wang on the question of negligence owing to her failure to testify in the course of these proceedings. As a co-owner of the business, and the property on which it was situated, Ying Jai Huang owed a duty of care to ensure that substances that might cause harm to

passers-by would not be permitted to escape from the Crystal Shoes property. Having found on a balance of probabilities that she was aware of the repairs being made to the stoop in front of Crystal Shoes by her husband, and that she was also aware of his efforts to clean the concrete residue off of their property, she had an obligation to ensure he would not complete those tasks in a way that would cause risk of injury and damage to members of the public using the adjacent City sidewalk. She failed in that duty. Accordingly, as a co-owner of the property, and a co-owner of the business, I find that she is jointly and severally liable with her husband to the plaintiffs Marjory and David Cartner, both in nuisance and negligence.

Liability of the Corporation of the City of Burlington

[146] The issue to be determined with respect to the City is whether the municipal sidewalk where Marjory Cartner slipped and fell on November 8, 2002 was in a condition of non-repair, and if it was, whether that state of non-repair was a cause of the plaintiff's accident and the injuries she suffered.

[147] The plaintiffs advanced three distinct grounds for their contention that the sidewalk was in a state of non-repair. First, they claimed that the three sidewalk slabs where the concrete slurry pooled after flowing off the Crystal Shoes property were improperly designed and constructed. The plaintiffs say improper design and construction necessarily caused those three slabs to have been in a state of non-repair. Second, they argued that the reverse slope of those three slabs away from the street and towards the Speedy Muffler property prevented proper drainage from occurring at that spot. That drainage failure permitted the concrete slurry on which Marjory slipped and fell to pool on those three slabs. They claim that drainage failure constituted a state of non-repair of the sidewalk in and of itself.

[148] Finally, the plaintiffs asserted that improper and inadequate grinding repairs made by the City before the accident to the joint between the northern-most of the three reverse slabs and the adjoining northern slab, which was sloped in the other direction towards the street, necessarily created a state of non-repair. They claim those slabs ought to have been replaced under the City's own maintenance policy, but that instead the City merely ground down the edge thereby creating a south-flowing grade as between the two slabs, which redirected the flow of concrete slurry and permitted it to pool on the sidewalk. The plaintiffs say that the failure of the City to properly repair the southern edge of the north slab or to replace the entire section with a new sidewalk section in accord with its own policies necessarily caused that area of the sidewalk to be in a state of non-repair.

[149] The City of Burlington claimed that the plaintiffs failed to prove both necessary elements required to succeed against them; first, that this sidewalk was in a condition of non-repair on November 8, 2002, and secondly that the incident was caused by a condition of non-repair of the sidewalk. Alternatively, the City claimed that it did not know, and could not reasonably have known, about the presence of concrete slurry on the sidewalk that morning, and that it took reasonable steps to prevent any alleged default from arising.

[150] It should be noted here that if only one defence were provided to the City under the *Municipal Act*, that of not reasonably being able to have known of the pooled concrete slurry on the sidewalk, in my view such a defence would have provided complete exoneration of the City from liability in this matter, regardless. That follows, because the plaintiffs admitted in argument that the City could not reasonably have known of the pooled concrete slurry that had accumulated on its sidewalk in the few hours that passed between the time Mr. Wang hosed the slurry off his property and onto the sidewalk, and the time the next morning when Marjory Cartner fell on that slurry. The unknown presence of the slurry itself in a period of some 24 hours or less before the

accident cannot be regarded as causing the sidewalk to be in a state of non-repair. Rather, if liability is to be found here it will be based on the physical state of the sidewalk itself, and whether that state was one of disrepair. That is the only basis upon which the liability of the City can be engaged here.

[151] The focus must be on the actual physical state of the sidewalk. Further, to my mind, it necessarily follows that if a state of non-repair is found to have existed for one or more of the reasons advanced by the plaintiffs, in considering the availability to the City of the statutory defences in subsections 248(1.2) and (1.3) of the *Municipal Act*, reproduced below, the focus must be on whether the City ought reasonably to have been aware of the existence of a physical state of non-repair, and whether its inspection and maintenance policies and programs, and the manner in which inspection and maintenance was carried out constituted reasonable steps to prevent a physical state of non-repair.

1) Framework of analysis

[152] The liability of the City in this case is governed by section 284(1) of the *Municipal Act*. At the time of the accident, it provided as follows:

284(1) Every highway and every bridge shall be kept in repair by the corporation the council of which has jurisdiction over it or upon which the duty of repairing it is imposed by this Act and, in case of default, the corporation, subject to the *Negligence Act*, is liable for all damages sustained by any person by reason of such default.

(1.1) In case of default, the corporation, subject to the *Negligence Act*, is liable for all damages any person sustains because of the default.

(1.2) The corporation is not liable under subsection (1) or (1.1) for failing to keep a highway or bridge in a reasonable state of repair if it did not know and could not reasonably have been expected to know about the state of repair of the highway or bridge.

(1.3)The corporation is not liable under subsection (1) or (1.1) for failing to keep a highway or bridge in a reasonable state of repair if it took reasonable steps to prevent the default from arising.

(1.4)The corporation is not liable under subsection (1) or (1.1) for failing to keep a highway or bridge in a reasonable state of repair if, at the time the cause of action arises,

(a) minimum standards established under subsection (1.5) apply,

(i) to the highway or bridge, and

(ii) to the alleged default; and

(b) those standards have been met.

(1.5)The Minister of Transportation may, by regulation, establish minimum standards of repair for,

(a) highways and roads;

(b) classes of highways and roads;

(c) bridges;

(d) classes of bridges.

(1.6)The minimum standards may be general or particular in their application.

[153] Liability of the City can only arise as a result of a breach by it of its statutory obligation to maintain roads and sidewalks in a state of repair. In *Boghosian and Davison*, the *Law of Municipal Liability in Canada* (Butterworths: Toronto, Looseleaf) the authors note at para 2.158 that at common law, public bodies responsible for keeping roads and bridges in proper repair could not be found liable for damages sustained by a person who suffered injury from their failure to do so:

Courts of the late 19th and early 20th centuries were reluctant to find municipalities liable for road non-repair at common law. The imposition of liability was avoided through the application of a number of principles, including the rule against liability for nonfeasance. An even greater impediment to recovery

was the principle that liability for road non-repair could only be made out if the plaintiff showed that the municipality had actual notice of the defect and a reasonable opportunity to remedy it. For all intents and purposes, the common-law position as of the late 19th century was that “public bodies charged with the duty of keeping public roads and bridges in repair... were... not liable to an action for damages at the instance of a person who had suffered injuries from their failure to keep the roads and bridges in proper repair.”: see *Pictou v. Geldert*, [1893] A.C. 524 at 527 (P.C.).

[154] Many jurisdictions, including Ontario, recognized that this was an inappropriate bar to recovery by plaintiffs against municipalities in the face of negligent conduct. They created both a statutory duty to keep roads and sidewalks in a reasonable state of repair and a corresponding statutory cause of action for breach of that duty. In a case such as this, given that Ontario has enacted a statutory cause of action to remedy the common law deficiency, the plaintiff must seek its remedy under the statute and only the statutory remedy is available: see *The Law of Municipal Liability in Canada*, above, at sections 2.158-2.162; *Sharp v. Public Administrator*, [1944] 3 D.L.R. 391; *O’Neill v. Rosetown*, [1941] 3 D.L.R. 706 (Sask. C. A.).

[155] In jurisdictions where a statutory scheme has been enacted, it has sometimes wrongly been assumed that the plaintiff must establish negligence in order to succeed in an action against a municipal authority. Rather, as the Court of Appeal observed many years ago in *Greer v. Mulmer (Township)*, [1926] 4 D.L.R. 132, 59 O.L.R. 259 (O.C.A.), in an action against a municipality for “something wrong with the road”:

[t]he law, as I understand it, is that it is the duty of a municipality to keep its roads, or to use all reasonable efforts to keep its roads, in a reasonable state of repair. When it is shown that a road is not in a reasonable state of repair and that damage has been caused by the want of repair, a *prima facie* case is established against the municipality. Confusion has arisen frequently by reason of the fact that the action of the municipality has been called negligent, and people have thought that it was for the plaintiff in such a case to establish negligence. That, as I say, is not what I understand the law to be. When want of repair is

shown, a *prima facie* case is made out; it is then for the municipality to show that the want of repair existed notwithstanding all reasonable efforts on the part of the municipality to comply with the law.”¹

[156] Thus, to summarize, in determining whether the City is liable to the plaintiff for her injuries in this case, the onus first falls to the plaintiff to show on a balance of probabilities not only that the sidewalk was in a state of non-repair, but also that such state of non-repair was a cause of the plaintiff’s injuries applying the “but for” test as enunciated in *Athey v. Leonati*, and as reaffirmed in *Resurface*, both above. Only once that onus has been met by the plaintiff and a *prima facie* case established that non-repair was a cause of the plaintiff’s injuries does the burden of proof shift to the City of Burlington to avoid liability by showing either that it took reasonable steps to maintain the sidewalk in a state of repair or that it could not reasonably have known of the presence of the state of non-repair of that sidewalk. If it is able to establish either of these alternatives, it will escape liability. If it does not discharge that onus, it will be found liable.

2) What is the meaning of non-repair and what is the standard of care owed by the City to users of its sidewalks?

[157] Other decisions of Canadian courts and this court, in particular, establish that the standard of repair is a reasonable one and that a municipality is not an insurer which guarantees that citizens who use its sidewalks will not sustain injuries. Counsel referred to several important decisions which she says establish that the sidewalk where Marjory Cartner fell met the City’s statutory obligation to maintain its roads and sidewalks in a

¹ See: *City of Vancouver v. Cummings* (1912), 46 S.C.R. 457; *Blanquiere v. Burlington*, [1999] O. J. No. 2558; and *The Law of Municipal Liability in Canada*, above, sections 2.160 and 2.161, and cases cited there. I specifically note and acknowledge here that it is common law negligence rules that continue to apply where the statutory scheme has not been enacted. As in so many areas in Canada, the regimes applicable in various Canadian provinces and municipalities remains a patchwork, so caution must be exercised.

state of reasonable repair. However, given the fact specific nature of the cases, it is the particular facts in this case relating to the state and condition of the sidewalk which must determine, on a balance of probabilities, whether it was in a state of non-repair engaging the liability of the City and whether the City can avail itself of the statutory defences provided to it under the *Municipal Act*.

[158] Before outlining my conclusions on these questions in this case, it is useful to review the principles found in several of the key cases relied upon by the City in support of its contention that the sidewalk where Marjory Cartner fell was not in a state of non-repair within the meaning of the statute.

[159] In *McMaster (Litigation guardian of) v. York (Regional Municipality)*, [1997] O.J. No. 3928 (Ont. Ct. Gen. Div.), the plaintiffs brought an action for damages against the municipality for grave injuries caused when the victim's car went off a rural road and ended up in a ravine. He was not discovered for 36 hours. The plaintiffs alleged that the accident was caused solely by the negligence of the municipality for having failed to keep the road in proper repair and for posting a legal speed limit of 80 kph for the road when the plaintiffs claimed the speed limit should have been posted at a much lower speed level given the nature of the road.

[160] Justice Ellen MacDonald dismissed the plaintiff's action. He failed to establish on a balance of probabilities that the accident was caused solely by the alleged deficiencies of the speed advisory sign. The victim had driven that road on several previous occasions and the evidence did not show that the sign was confusing, especially to him. Moreover, the evidence showed that the defendant had met the standard of care required for the maintenance of rural roads such as the one in question.

[161] Of particular relevance in that case, as it relates to this case, was Justice MacDonald's review of the opinion evidence of the experts. It was the plaintiff's expert's opinion that the design of the roadway was substandard at the time of the accident, and that it failed to meet prevailing standards for the provision of safe roads and constituted a hazard to the driving public. He opined that if curve forewarning signs warranted by the prevailing standards had been in place, it was likely that the collision would not have occurred. Further, it was his opinion that if the roadway and curve had been constructed and maintained in accordance with prevailing road design and safety standards, it was equally likely that the collision would not have occurred.

[162] Justice McDonald refused to accept these expert opinions. In her view, the plaintiff's expert had become an advocate for the position of the plaintiff, which "diminished the desired and preferable objectivity which is fundamentally important to the role of an expert witness" (at para. 45). She found that his opinion was tainted with the notion, merely because the tragic accident had happened, that it must have been the fault of York Region. She concluded that it was not surprising that his evidence was tainted in this way given that "he saw his mandate as one which was to criticize the roadway with a view to convincing the Court that there was a causal link between the traffic control devices and signage on the roadway and the tragic accident that occurred."

[163] Noting that the road on which the plaintiff was traveling was not untypical of many rural roads in the province, MacDonald J. observed that to succeed in their claim the plaintiffs still had to establish that York Region breached its mandated obligation to keep the road in repair and that that breach caused the plaintiffs injuries.

[164] MacDonald J. adopted the classic articulation of Armour C.J. that municipalities are bound to maintain their roadways "in such a reasonable state of repair that those requiring to use the road may, using ordinary care, pass to and fro upon it in safety":

Foley v. Township of East Flamborough, [1898] 29 O.R. 138; see also *Thompson, Rogers on Municipal Liability*, (Canada Law Book Inc.) at page 42 where the authors observe that:

...Whether or not there is a condition of non-repair is a question of fact in each case depending upon all the surrounding circumstances, but the courts have been increasingly liberal in the interpretation of what constitutes non-repair. A municipality is not, however, to be treated as an insurer of the safety of those using its streets and highways. Its obligation is not absolute but rather involves a duty to take reasonable action. It cannot be expected to make all of its roads passable at all times and in all weather conditions. **Any liability will be based on negligence principles, and the evidence must be examined in its entirety to determine whether the duty to reasonably maintain the highway was discharged.** (my emphasis)

[165] It is the statutory duty of the municipality to keep roads in repair that creates a positive or affirmative duty. That is the source of its duty to inspect (subject to a *bona fide* policy decision not to inspect) for the purpose of seeking out and remedying conditions of non-repair.

[166] A municipality must actively take steps to prevent disrepair from arising. Whether there is a condition of non-repair is a question of fact in each case depending upon all the surrounding circumstances. However even a trend towards an expansive interpretation of what constitutes non-repair cannot cause the municipality to be treated as having guaranteed the safety of those using its streets and highways. Its obligation is not absolute. Rather, it involves a duty to take reasonable action. It cannot be expected to make all of its roads passable at all times and in all weather conditions. An ideal standard of perfection is neither achievable nor is it required. The Ontario Court of Appeal later agreed with the trial judge that the municipality had met its standard of care to keep that roadway in repair.

[167] In *Cole v. Deep River (Town)*, [2003] O. J. No. 583 (O.S.C.J.), the plaintiff sued the municipality for injuries resulting from a slip and fall on a sidewalk. The sidewalk where the accident occurred was sloped but the municipality left sand on the sidewalk to provide traction in case ice was present. The plaintiff was 56 years old. She walked by the sloped sidewalk in March, noticed sand on it and avoided it. She was well familiar with the slope. She had walked on it previously in summer, but she said she typically avoided it in spring and winter. The next day she walked by the slope again and again noticed the presence of the sand, but this time she stepped onto the slope without looking, slipped on the sand and fell sustaining serious injuries. Importantly, there had been no other reported slips or complaints regarding the sloped sidewalk, which was steeper than the building code stipulated, although less sloped than in other governmental allowances. Expert evidence indicated that the slope was slip-resistant at an acceptable level and that spreading sand on sidewalks to guard against the risk of ice late in the winter season was standard municipal practice throughout much of Canada and not only in this province.

[168] Justice Power concluded that the plaintiff's negligence alone was the cause of her injuries because she was aware of the sand, familiar with the slope, and familiar with the normal risks of walking in late winter conditions. She had failed to take evasive action and failed to check that her footing was sure before she stepped onto the slope. The judge found that the slope's design and maintenance by the municipality created no special hazards or risks for the plaintiff, as demonstrated by the lack of other slips or complaints. In this case, it was noteworthy that that no design specifications were drawn up when the sidewalk was built for use in its construction. While he accepted that there was a slope to the sidewalk, he refused to accept that it had a steep slope.

[169] At paragraph 96 and following of his reasons, Justice Power concluded that the extent of the municipality's duty must be determined in the context of weather and related conditions to which Canadian citizens are, and can be expected to be exposed. Any adult

person familiar with Canadian weather knows, or should know, that walking on sidewalks, ramps, or streets can and may be dangerous, especially in winter and spring conditions. The statute does not impose strict liability on the municipality. A slip or fall on a sidewalk or ramp that is covered with sand does not automatically warrant a finding that a municipality has failed to meet its statutory duty to keep the sidewalks in repair. The municipality cannot be expected to eliminate each and every condition that might possibly contribute to the possibility of someone slipping, tripping or falling. The streets and sidewalks and ramps must be maintained and kept in a state of repair that will ensure they are safe for use by pedestrians. Pedestrians must also make reasonable use of them. In holding that the City could not be held liable, Power J. concluded that the plaintiff was well aware of these risks.

[170] He found that it would have been unreasonable in the circumstances of that case to find the municipality liable, or that it was tardy in failing to clean up the accumulated sand on the ramp at the end of the winter, since it had no notice whatsoever that there was anything unusual about the ramp. Moreover, the plaintiff was the only one who fell on the ramp and no other members of the public had complained about the ramp. The weather conditions in effect at the time of the accident had persisted for some time, and the plaintiff, he noted, was not a stranger to that ramp.

[171] Power J. accepted the admonition in *Snell v. Farrell* that causation need not be determined by scientific precision, but rather as "... essentially a practical question of fact, which can best be answered by ordinary common sense rather than by abstract metaphysical theory." Nevertheless, he concluded that the plaintiffs had failed to persuade him on a balance of probabilities that the city had failed to meet its statutory duty under the *Municipal Act*, or to satisfy him that the ramp was negligently designed and/or constructed: see also *Stojadinov v. Hamilton (City)*, above.

[172] Another decision in the context of a sidewalk accident is *Blanquiere v. Burlington (City)*, [1999] O. J. No. 2558, involving the same defendant as in this case. The plaintiff sued for damages for personal injuries arising from a trip and fall on a City of Burlington sidewalk. She was a 62-year-old school secretary who went for a walk in February of 1998. After about 2 km, she suddenly fell on the municipal sidewalk. She injured her face, shoulder, elbows and knee. It was a cool and crisp early evening with no recent precipitation, and visibility was clear. The plaintiff was able to see the sidewalk and road without difficulty, and she was wearing walking shoes. She was very familiar with her route on the day in question having walked it an average of twice per week for many years prior to the accident. Prior to the fall, the plaintiff had been looking straight ahead, and she did not observe any problems with the sidewalk. After she fell, however, she noticed that a trip ledge measuring an inch and a half existed between two concrete slabs of sidewalk. During cross-examination, she admitted that she did not know how she fell as it all happened so fast. She could not say that she had tripped or stubbed her foot on that trip ledge. She could not even say that any part of her foot had made contact with the trip ledge. Justice Valin dismissed her action. He concluded that the plaintiff had failed on a balance of probabilities to prove that any un-evenness that may have existed between the sidewalk slabs caused her to fall.

[173] Justice Valin noted that before the question of municipal liability could arise, the onus was on the plaintiff to establish where she fell, that there was a trip ledge at that point, and that the trip ledge had caused her fall: see *Cockburn v. The City of Windsor*, [1944] 2 D.L.R. 778 (H.C.J.). She satisfied the first two requirements of that onus, but the live issue during the trial was whether she had satisfied the third. After reviewing the provisions of s. 284(1) of the *Municipal Act*, Valin J. continued as follows, at paragraphs 8 and 9:

8. The Act makes it clear that the duty on a municipality is to keep its sidewalks in a reasonable state of repair, which would permit a person using ordinary care for his or her own safety to pass along them in safety. In the event a municipality fails to do so, it can be held liable in damages sustained by a person by reason of such default. However, a municipality is not required to maintain all its sidewalks in perfect level, or to keep them free of imperfections or as smooth as a billiard table. It does not follow that, because an accident happens, a sidewalk is necessarily in a state of non-repair: *Marshak v. The City of Toronto*, [1953] O.W.N. 101 at 102 (H.C.J.); *Stojadinov v. Hamilton (City)*, [1988] O. J. No. 2038 (H.C.J.).

9. The effect of the statutory duty established by the *Act* is that, whenever it is shown that a sidewalk was not in a reasonable state of repair and that damage was caused by want of repair, a *prima facie* case is established against the municipality. The onus of meeting the *prima facie* case is on the municipality. This presumption can be rebutted, however, by the municipality showing that it took all reasonable precautions to anticipate and remedy such conditions, that is, to keep the sidewalk in a safe condition: Rogers, *Law of Canadian Municipal Corporations*, 2nd.ed. (Toronto, The Carswell Company Limited, 1988 vol. 2, at pages 1270 -- 1271).

[174] In summary, I accept that the City is not an insurer of pedestrians that use its sidewalks. Neither is it required to maintain its sidewalks in a perfectly level condition free from all imperfections. Pedestrians must use ordinary care for their own safety as they pass along the sidewalk, as must motorists in the use of municipal roads. It does not follow merely because an accident occurs that a sidewalk or roadway is necessarily in a state of non-repair, regardless of how tragic such an accident might be.

[175] However, it is equally evident to me that in assessing the state of the sidewalk in this case, and whether it was in a state of non-repair, a determination by the municipality itself that a portion of sidewalk or roadway requires remedial work under its own maintenance policies must necessarily lead to the conclusion that the portion or area of sidewalk is not in a state of repair. Moreover, where a municipality determines that a section of roadway or sidewalk is in a state of non-repair and proceeds to fix it, it cannot be unreasonable for residents to expect that the remedial work will actually repair the

defect identified by the municipality, in accordance with its policies, and not leave the sidewalk or roadway in a continuing state of non-repair in spite of the remedial work.

[176] In determining whether a section of sidewalk or roadway is in a state of non-repair, it seems equally reasonable to expect that the municipality will adhere to its own inspection, maintenance and repair procedures, and take reasonable steps to insure that the sidewalks and roadways are in compliance with those policies, regardless of whether those policies might otherwise be considered adequate on their own merits.

[177] These are the issues that come into play here in determining the liability of the City of Burlington in this case, and whether the sidewalk where Marjory Cartner slipped and fell was in a state of non-repair at the time of her accident. It is the failure of the City to meet these standards that causes me to conclude that the sidewalk was not in a state of repair, and that the City must be liable if that state of non-repair was a cause of Mrs. Cartner's accident and the injuries she sustained.

3) Was the sidewalk in a state of non-repair?

[178] The plaintiffs argued that the sidewalk was in a state of non-repair on the basis of three distinct grounds: first, that the three concrete slabs located near 764 Guelph Line where the concrete slurry pooled after flowing off the Crystal Shoes property had been improperly designed and constructed; second, that the reverse slope of those three slabs away from the street and towards the Speedy Muffler property prevented proper drainage from occurring and permitted concrete slurry to pool on the three slabs; and third that improper and inadequate grinding repairs were made to the joint between the northernmost of the three reverse slabs and the adjoining northern slab necessarily created a state of non-repair. The plaintiffs claim that each of these three flaws constituted a state of non-repair of the sidewalk. These contentions and the evidence

relating to them, as well as my findings on each ground, are addressed in the paragraphs that follow.

(a) Evidence relating to the sidewalk and its maintenance

[179] As he examined Mr. Stein Pedersen, his forensic engineering expert, counsel made clear that the plaintiff would argue that the three sloped slabs were constructed at a different time than the rest and that they were constructed incorrectly in the angle at which they were installed, incorrectly sloping away from the roadway rather than towards it as was the case with all other sidewalk slabs in this stretch of sidewalk. The differences in slope were plainly evident in the photographic evidence, and the allegation of incorrect construction was clearly made in Mr. Pedersen's expert report. As well, counsel made clear that the plaintiffs would argue that the failure of the sidewalk to drain properly and the improper grinding of the sidewalk done by the City in alleged non-compliance with its own maintenance policies caused the sidewalk to be in a state of non-repair.

[180] Four witnesses testified respecting the sidewalk. They were Mr. Pedersen, Mr. Malone, the City's expert, Mr. Powell of the City's Roads and Sidewalks Department and the sidewalk inspector, Ms. Cvetkovic.

[181] From the outset, counsel for the City challenged Mr. Pedersen's qualifications as an expert. She said that he was not qualified to address what she described as the complex, scientific issues of sidewalk slope, construction and drainage. He was a mere metallurgical engineer, she said, unlike Mr. Malone who she claimed had expertise in the area of traffic and roadway safety. However, her contention that Mr. Pedersen was not qualified to give evidence in this case is one I reject. Mr. Pedersen's résumé attests to his extensive experience. He has testified in over one thousand slip and fall cases, twenty to thirty percent of which involved sidewalks. Regardless of his particular focus when he

received his educational qualifications, it was clear to me from his extensive experience that Mr. Pedersen was very well qualified to assist the Court with his measurements, observations and opinions concerning the state of the sidewalk where the accident occurred.

[182] Moreover, unlike the expert in *McMaster*, above, who ventured beyond his role as an expert and became an advocate, Mr. Pedersen delivered his evidence in a straightforward, clear, unembellished, balanced and common sense manner. He was a very helpful, credible witness, whose evidence, in combination with the photographs and measurements he took, was of great assistance to the Court. In contrast, I found the evidence in-chief of Mr. Malone, the City's expert, to have been more theoretical than based on the actual observable facts here and I found that it defied common sense to some extent. The conflict between common sense and easily observable facts in this case, based on the photographic evidence, caused me to be much more concerned that it was he, not Mr. Pedersen, who had become an advocate for his client's position. Regardless of that concern, as I recount below, Mr. Malone agreed with the accuracy of Mr. Pedersen's measurements of the sidewalk and more importantly, he confirmed several important elements of Mr. Pedersen's opinion, evidence that fully supported the position of the plaintiff.

[183] Mr. Pedersen attended the accident site on December 21, 2002 for about one hour. He had with him a camera, tape measures, various surveyor quality spirit levels and precision steel rulers. He determined that the majority of the stretch of sidewalk sloped 1.3 degrees towards the roadway. However, the three slabs in question where the concrete slurry had pooled sloped between 1.3 to .5 percent in the other direction away from the roadway, that is, towards the adjacent properties. He determined as well that the sidewalk slab immediately north of those three reverse sloped slabs was quite high compared to those three slabs. He measured a drop of two and a half inches in height

between the driveway slab at the edge of the Crystal Shoes property and those three reverse sloped slabs.

[184] Most importantly, Mr. Pedersen also testified how the southern edge of the northern abutting slab had been scarfed down through grinding. It was evident to him, and he testified, that the City must have recognized the disparity in height of the two edges of the abutting concrete slabs and ground down the edge of the higher slab to eliminate a pedestrian trip hazard. As a result of that grinding, it appeared to Mr. Pedersen that water flowing off the Crystal Shoes driveway would turn in a southerly direction once it reached the sidewalk and then flow down the scarfed surface landing on the northernmost of the three reverse sloped slabs. Further, since those three sidewalk slabs sloped away from the roadway towards the adjacent properties, water would tend to collect against the adjacent property. At the southern end of the three reverse sloped slabs where the original sidewalk continued, the height differential was less, a difference of 5/8th to 3/4 of an inch.

[185] Mr. Pedersen also observed that it was evident from the differing colours of the concrete that the three reverse sloped slabs had been constructed more recently than the rest of the sidewalk. He explained the composition of concrete sidewalks and how he could detect that the three reverse sloped slabs were of newer construction by the spalling and mechanical damage present on the older sidewalk sections, features that gave it a rough textured appearance. In contrast, the three slabs were lighter in colour and had nicely brushed surfaces and neatly trowelled edges. No spalling had yet occurred. He found no builder's stamp impressed into those three slabs.

[186] These conclusions, and his other findings on which he testified, led Mr. Pedersen to give his opinion about how the state of the sidewalk had impacted on Mrs. Cartner's fall. It was his opinion that Mrs. Cartner had fallen on a sidewalk that was sloping

incorrectly such that it collected water and other contaminants. As he described it in his evidence:

There was a good potential to, to have cement slurry settle on the sidewalk and as it couldn't drain properly until over time because the moisture would have to percolate into the soil rather than running off into the street, it's quite likely that if there was slurry present, it would have been there in a relatively slippery form and she could have easily slipped in it....

The slope would have kept the water contained there and the slurry would have been piled up on that one end, one side, the inboard side of the sidewalk.

Mr Pedersen was asked whether the two and a half inches of height differential on the north end of the three reverse sloped slabs and the less than 5/8ths inch differential on the south end of the three slabs would have had any impact. He said that those were the factors that would have caused the water and the slurry to be trapped to those three slabs. It was his opinion that the slope of the three slabs away from the roadway drainage and towards the grass on the adjacent properties would have caused water or slurry to remain there longer before draining, drying up from evaporation, or otherwise dissipating. It was his opinion that the height differential at the southern end was enough to serve as a sort of "mini-dam" (my expression) which in his opinion would have caused water to pool on the three reverse slope slabs.

[187] Turning specifically to the issue of construction of the three slabs, Mr. Pedersen did not know when they had been constructed or installed, and he did not know how they had been installed or by whom, but he did know from observable characteristic differences that they were more newly constructed than the rest of that sidewalk. He testified that the OPS Guideline for sidewalk construction calls for the sidewalk to be sloped away from abutting properties and towards the street. That construction mandate is evident from Exhibit 37. He confirmed that those Guidelines are meant to be followed

in Ontario and he explained that to ensure proper construction, a municipality would typically provide those guidelines to a contractor hired to install a section of sidewalk.

[188] Mr. Pedersen could not say whether this section of sidewalk that sloped away from the roadway had been constructed that way or whether it had heaved or settled to that angle of slope. However, he confirmed what common sense suggests, that a newly constructed section of sidewalk should follow the Ontario sidewalk construction model guideline and be sloped in a manner consistent with the rest of the sidewalk towards the roadway where drainage sewers are located, absent topographical features to the landscape requiring that an alternative profile should be adopted.

[189] Mr. Pedersen was asked whether it is expected that there will likely be a settlement of a sidewalk or whether trip hazards are expected to develop, but he said that was not the case. He did not agree that such developments “are to be expected.” Rather, he confirmed that when a sidewalk is constructed, it generally tends to remain where it is and in the same position in which it was constructed. There could be heaving of a newly laid section of sidewalk but this would be the result of water collecting under the sidewalk and freezing. This would cause the sidewalk to heave. Similarly, a sidewalk would not normally settle or experience subsidence, but if it did, that usually indicated that an inadequately prepared sand and gravel bed was laid for the new section of sidewalk to rest upon. This could have caused settling or subsidence of that section of the sidewalk. However, even if the three slabs of newer sidewalk were not initially constructed at an angle and slope that was the reverse of the rest of the sidewalk, and even if heaving or settling did cause those newer sections of sidewalk to slope in the reverse direction away from the roadway and the drainage it provided, it is evident to me that neither heaving nor settling ought to have occurred with a newer section of sidewalk if it was laid properly in the first place.

[190] Mr. Malone also visited the site of the accident but only five years after the accident occurred, in August of 2007. He did not re-measure the sidewalks. He did not dispute the measurement information provided in Mr. Pedersen's report. He was satisfied that the level of detail in Mr. Pedersen's report for measurements was accurate and sufficient to enable him to comment. Mr. Malone confirmed as well that when he saw them five years after the event, the particular sections of sidewalk still

...looked like they had been repaired or adjusted in some way at some point in time and so they were somewhat distinct from the, the portions of sidewalk adjacent to them, and there were some red markings like utility markings also on them that correlated with some of the photographs that had been provided.

In other words, the accident site still looked much the same in August 2007 as it did when the photographs were taken shortly after the accident.

[191] Mr. Malone referred in his evidence to two other guides on appropriate sloping tolerances for sidewalks, one called the Infraguide and the other a U.S. government Federal Highways and Works Authority document. Both documents gave guidance to what American safety and highway authorities consider acceptable change in level tolerances for sidewalks, maximum heights for trip ledges, and appropriate cross-slope and running cross-slope percentages. While these may be persuasive in an American context, it was not immediately evident to me why it was suggested that these authorities should be preferred to the Ontario Guidelines.

[192] Mr. Malone elaborated. When questioned about these differing slope specifications, and specifically about the Ontario Guidelines, Mr. Malone said that the City disagreed with the plaintiffs' contention that it is the Ontario Guideline that should be followed in this case. While he conceded that the Ontario Guideline might be appropriate for new sidewalk construction, and that the most common way that a sidewalk would be constructed would be to have its cross slope heading towards or

pointing towards the roadway, he said those American authorities took better account of the “ongoing realities of maintenance of a sidewalk”.

[193] Somewhat surprising to me was his testimony in which he insisted that the sidewalk need not slope toward the roadway. He testified that the primary reason for providing cross-slope is to allow for drainage of water off the sidewalk. In this, he and Mr. Pedersen agreed – the existence of cross slope is needed to assist in the process of causing water to run off the sidewalk. However, Mr. Malone testified that it was irrelevant whether the sidewalk cross-slope is towards the property side or towards the roadside. The slope of the sidewalk and the direction of the drainage could vary, he said, depending on the site conditions where the sidewalk was constructed. He also agreed with Mr. Pedersen that if there is no slope present, there will be a tendency for pooling of liquid to occur on the sidewalk, not a desirable objective. He also agreed with plaintiff’s counsel that the photographic exhibits taken hours after the accident showed the slurry pooled against the grassy side of the sidewalk away from the roadway.

[194] He was challenged in cross-examination about his views. He acknowledged that the OPS guideline provides for a two to four percent slope towards the roadway, but continued to insist that drainage could occur in any direction and not necessarily towards the roadway. Drainage could occur into a grassed boulevard, he said, or drainage could occur through the cracks around the paving stones on the roadway side of the sidewalk. Either would work, as long as there was, in fact, drainage occurring. Mr. Malone did acknowledge, however, that all the other slabs of this sidewalk except the three in question sloped towards the roadway. Mr. Malone also acknowledged that the most common way of constructing a sidewalk is with the slope towards the roadway where gutter roadway drains or sewers are typically located.

[195] When pressed, Mr. Malone could not account for why the three reverse sloped slabs of sidewalk central to this case were sloped towards the properties rather than towards the roadway. He agreed with plaintiff's counsel that there were no topographical features present that would have suggested that a reverse sloped sidewalk was either required or preferable. He agreed that it was preferable to make the sidewalk design consistent as a whole along its entire length from a design perspective. He agreed that there were no features evident in the photographic exhibits that would cause a designer to slope the newer three slab sidewalk section towards the grass rather than the roadway.

[196] In any event, and most importantly, Mr. Malone agreed with plaintiff's counsel, and with Mr. Pedersen's testimony on the same point, that a sidewalk should never be designed so that its slope causes it to retain water because "[w]ater puddles pose a slipping hazard to sidewalk users and even more difficult to negotiate when frozen into ice sheets in colder climates." He accepted the proposition put to him that any pooling of liquid on a sidewalk is a problem. Moreover, Mr. Malone said he could not disagree with Mr. Pedersen's evidence that the three reverse sloped slabs were constructed more recently than the rest of the sidewalk. Not only did he not know when they had been constructed, but he acknowledged that he had not investigated that issue in preparing his report. He acknowledged that for all he knew, the accident site could have been a newly constructed three-panel portion of sidewalk.

[197] Ms. Cvetkovic is now a teacher but she served for several summers, while attending university, as the City's sidewalk inspector. She testified how she inspected one-third of the City of Burlington's sidewalks each summer, thus theoretically ensuring that the entire sidewalk network was inspected every three years. This job required her to walk each day, rain or shine, for eight hours a day with her head down inspecting the sidewalks of the City of Burlington.

[198] Unfortunately, the evidence showed that Christina received little training for her work. She had no background in construction, and her instruction on sidewalk inspection appears to have entailed little more than an hour and a half of driving around with Chris Spiedini, who also worked for the City, as he pointed out to her a couple of examples – examples of trip ledges and sidewalk deficiencies – so she “would know what to look for”. Moreover, while the City of Burlington maintained a two-page policy on sidewalk repair, Christina was never formally instructed on that policy. She never even read the entire policy – she acknowledged in her evidence that she only read the first page. Ms. Cvetkovic acknowledged that she never saw a City of Burlington policy with respect to sidewalk slope maintenance, and that it was clear to her that the principal overriding concern of her inspection walks was the discovery of trip ledges. I note here as well that neither Mr. Malone nor Mr. Powell were aware of Ms. Cvetkovic having received any more formal, structured or detailed education or training for the important inspecting job she was undertaking for the City than the brief cursory training exposure she described. When questioned, Mr. Malone reluctantly agreed in his testimony that something more professional and less trifling ought to have been provided by way of training to permit Christina to fully understand the sidewalk characteristics and flaws on which she was expected to monitor and report. I note as well that while Mr. Chris Spiedini apparently still works for the City’s sidewalk maintenance department, and could have been called to give evidence of the training he imparted to Christina, he did not testify.

[199] Christina explained in her testimony how she went about inspecting Burlington’s sidewalks for at least two summers while attending university. To facilitate the inspection of one-third of the sidewalks each year, the City had divided the municipality into three distinct areas of roughly equal size. One-third was to be inspected each year, as stipulated by the policy, but a street that lay on the dividing line between areas, like Guelph Line, would have both sides inspected the same year. Ms. Cvetkovic said that

when she inspected a large dividing street like Guelph Line, she would start at the Lake Ontario end, walk north towards the QEW Highway on one side, and then walk back down the other side back to the lake. She had a clipboard with her with pre-printed columnar sheets. A sample relevant to this matter was included in Tab 2 of Exhibit 35. The sheet includes columns to note the street, house number or location description and date of inspection. It includes columns for noting trip ledges of over one and a half inches, of between a half inch and one and a half inches, and for those of less than one-half inch. There are columns in which spalling or cracked sidewalks are to be noted (with a request to indicate quantity), and an "Other" column (again, indicate quantity and problem). Finally, there is a column headed "Grinding" and one headed "Date Completed."

[200] Christina noted trip ledges as falling into one of these several categories by height or degree of severity. Low trip ledges would be marked for grinding, middle height trip ledges were to be shored up, "ramped" and evened out with asphalt, but where trip ledges with a height of more than two and a half inches, or 50 millimetres, were discovered, they were to be marked for replacement of the sidewalk section, rather than mere grinding of the edges.

[201] As she proceeded, Christina marked her progress, and the ground she had covered, on maps provided to her by the City, and she painted markings on the sidewalk to show where repair work was required. City crews would come along later. They could see from their trucks as they drove by where such markings had been made, and they would then complete the required repairs. Cristina knew that sometimes the City would repair trip ledges merely by grinding, but she said that if a trip ledge was "really bad, they'll remove the entire slab, the sidewalk, and put a whole new slab in".

[202] One difficulty with this system was that if it was raining, the paint she was meant to use to make markings would not adhere to the sidewalk. Consequently, all Christina could do on rainy days when she found an area of disrepair was to make a note on the sheets on her clipboard. Further, if it was raining heavily, she would be called in out of the rain. Theoretically she would be required to go back to complete her inspection on another day.

[203] It is important here that there is no record that establishes with certainty that Ms. Cvetkovic ever inspected the area of sidewalk in front of Crystal Shoes on Guelph Line, although it is certain that Guelph Line was inspected in the summer of 2002, only months before the accident. She had no specific memory of having walked along the sidewalk at 764 Guelph Line where the Crystal Shoes outlet is located. She thought she had, but she also noted she might have been thinking of a location one block south, closer to the lake, on the south-east corner of Prospect Street and Guelph Line, rather than north of Prospect Street where Crystal Shoes is located.

[204] Christina testified that it must have been raining the day she inspected Guelph Line in the summer of 2002, because she noted that she had marked on her list that there was an area in need of repair for another location south of Crystal Shoes, but that she had been unable to paint on the sidewalk owing to rain, and had made note of this. Christina was also unable to know with certainty whether she inspected the sidewalk in front of Crystal Shoes because it seems that the maps that she used and marked as she progressed on her inspections around Burlington have not been retained by the City. Moreover, her own notes on the columnar sheets which the City did retain show no street numbers having been walked by or repairs required to the north of 610 Guelph Line. Unfortunately, the fact that location is 154 municipal property numbers south of the Crystal Shoes location necessarily leaves residual uncertainty whether the sidewalk in front of Crystal Shoes was inspected at all in the summer of 2002. The failure of the

City to retain all records which might have resolved this question directly contributes to this uncertainty.

[205] Mr. Powell was the last of the defence witnesses called by the City. He testified concerning the City's policy with respect to sidewalks, emphasizing that its focus is to provide a safe and hazard free sidewalk. While that was the stated focus of the policy, he admitted that there were no elements of the policy directed towards slope or grade issues, and maintenance of slope and grade conditions of the sidewalks. The only hazards actually addressed in the City's policy are trip ledges. Mr. Powell also freely admitted, and confirmed several times in cross-examination, that the City's trip ledge policy stipulates that if a trip ledge is two and a half inches or 50 millimetres high, it is not merely to be ground down. Instead the policy calls for the adjacent sidewalk slabs to be completely replaced. While the policy demands that replacement is the appropriate repair or maintenance service standard that must be complied with, he could not say whether the trip ledge between the northernmost of the three reverse slabs of sidewalk in front of Speedy Muffler, and the northern slab in front of Crystal Shoes, exceeded that height. The simple reason is because the City no longer maintains those records. Mr. Powell could provide no explanation for why the slabs would not have been replaced in full, assuming that the trip ledge in question exceeded the maximum permitted height, as Mr. Pedersen testified, and faced with his confirmation that no records had been retained that would provide an explanation.

[206] Mr. Powell was surprised that many more trip ledges had been observed, recorded and repaired in 1999 than had been reported by Ms. Cvetkovic in 2002. Looking at Walkers Line, at New Street from Guelph Line to Walkers Line, and at Guelph Line from Fairview Street to New Street in 1999, the City's records showed that it had repaired 107, 69 and 44 trip ledges respectively. Yet in her inspection of Guelph Line three years later in 2002, Christina had recorded only 3 trip ledges that required repair, as compared to 44

three years earlier. The Court was left to wonder whether this statistical difference might have been an inevitable result of the apparently cursory inspection training Christine received, or with proceeding too quickly along the streets.

[207] The state of uncertainty was not assisted by Mr. Powell's acknowledgement that the City never prepared any training manuals for use by sidewalk inspectors, and that he had no real knowledge of what training Christina Cvetkovic received for her summer job inspecting City of Burlington sidewalks. Neither was he able to say whether Christina had even inspected the sidewalk in front of Crystal Shoes and Speedy Muffler, because he had no knowledge of what might have happened to the small maps that Christina claimed to have used to record where she had walked and complete inspections or where they might have been located or stored. He said nothing that would verify whether Christina ever walked along that sidewalk at all.

[208] Interestingly, Mr. Powell also testified that City sidewalk inspectors were not looking for water pooling on sidewalks, and he saw no reason why they should be inspecting for grade related issues on the sidewalks. Indeed, he expressed surprise when told that the City's own expert, Mr. Malone, had said in his testimony that inspectors should be looking for pooling water because of the hazard it could cause to pedestrians.

[209] Mr. Powell confirmed that any replacement of the three reverse sloped slabs would have been the responsibility of his department, but he added that they had not been replaced to the best of his knowledge. The evidence showed that grinding and replacement work was generally farmed out to local contractors. Nevertheless, he had not tried to locate or examine any construction documents or records relating to the sections of sidewalk in question, nor did he look for any City of Burlington records that pre-dated 1999. Most importantly here, Mr Powell acknowledged at the end of his cross-examination by plaintiff's counsel not only that he would have expected the three slabs to

slope towards the roadway if they had been replaced by his department so that the slope of the new slabs would more or less conform with the slope of the abutting sidewalk slabs at either end after installation, but he also agreed that “it is a hazard if substances pool on a City sidewalk.”

(b) Did the design and construction of the sidewalk create a condition of non-repair?

[210] The City argued that the Ontario Provincial Standard Guideline for sidewalk construction is just that and only that – a guideline. It says that Guideline should not be used as a benchmark establishing the standard against which the municipality’s maintenance program or compliance with its statutory obligations should be measured. Rather, on the authority of *McMaster* and *Cole*, above, counsel said the Court can and should review relevant maintenance standards to determine whether the alleged condition of non-repair fell within applicable maintenance tolerances. It says that here it is the American guidelines referred to by Mr. Malone in his evidence that should be preferred. It will be clear from the reasons that follow that I reject that submission.

[211] It should first be emphasised that the obligation imposed on municipalities is to keep their sidewalks in a state of repair – not just particular slabs of sidewalk, not just sections of sidewalk and not just the edges of sidewalk slabs – it is the entire sidewalk as a whole that the municipality is obliged to keep in a reasonable state of repair. It is axiomatic, however, that the concept of “maintaining” a sidewalk in a state of repair must assume as its starting point that the sidewalk was in a state of repair initially when it was built. The City says that it is inappropriate to apply the OPS Guideline to mere issues of maintenance as opposed to standards of construction, but to my mind, the reverse sloped situation of a portion of the sidewalk on Guelph Line in front of Crystal Shoes is not an issue of maintenance. It is, at least initially, one of construction.

[212] Based on visible differences in appearance and evident wear and tear, Mr. Pedersen testified that the three slab section of this sidewalk that has a reverse slope was more newly constructed than the rest of the sidewalk. There were no records maintained by the City that would permit this Court to know with precision when that new section of sidewalk was laid, but it was presumably before 1999, the last point in time when the meagre records retained by the City indicate that the existing sidewalk was inspected, apparently in its present state more or less, and with the three slabs apparently present at the time. All this Court can do is draw the inevitable inferences that arise from the evidence it heard.

[213] I accept and find, based on the un-refuted evidence of Mr. Pedersen, that the three slab section of sidewalk in front of Speedy Muffler and Crystal Shoes was of newer construction than the rest of the sidewalk, based on its appearance and other factors permitting the relative age of the sidewalk sections to be compared. Who constructed it is unknown – no builders stamp or contractors stamp was found imprinted in that section of sidewalk, but it is more newly constructed than the rest of the sidewalk. The City must have taken steps on its own, or through contractors retained by it, to have that three slab section constructed sometime before 1999 to replace the sidewalk sections that had been there previously. It is axiomatic that a section of sidewalk would only have needed to be newly constructed if the sidewalk that had been there previously, that is those sections or slabs of the original sidewalk, had deteriorated or fallen into a state of non-repair.

[214] The standards referred to by Mr. Malone in his evidence may well be appropriate standards for maintenance when the issue is maintenance, but here, in the absence of topographical features that would have required that the section of sidewalk consisting of three slabs be designed and constructed with a slope towards the properties rather than towards the roadway, both the Ontario Standard for construction and common sense make clear that the sidewalk should slope towards the roadway. The roadway was where

the existing drainage sewers were located. It may be that the slope of those sections as newly constructed could not have been in exact compliance with the construction standard. This would have been the case, for example, if the older section was not in exact conformity with the slope stipulated in the standard. In such a case, the more prudent course of construction so as not to create trip hazards in the course of the new construction would likely have been to conform the slope of the new three slab section to the same approximate degree in the same direction of slope as the older sections of sidewalk that abutted the newly constructed section. It would not, however, have been to slope the sidewalk in the opposite direction, away from the roadway, and at a cross slope from the existing sidewalk slope, again in the absence of evident topographical features demanding it.

[215] Moreover, the construction standard for a new section of sidewalk would have required that the ground underneath the sidewalk be properly prepared and graded to the slope that was intended for the new construction. An appropriate base of gravel and screed needed to be laid underneath the newly poured cement to ensure that it had a proper, stable and balanced foundation. The scarce available evidence suggests by inference that the new section of sidewalk was likely no more than four to six years old. I draw this inference based on the City's proclaimed inspection of every sidewalk every three years and the evidence that the north end trip ledge was ground down after the 1999 inspection. However, common sense suggests that a newly laid sidewalk with a properly laid foundation would not heave or settle so soon after being constructed. Heaving or settling could have been the product of an improperly laid foundation for the sidewalk section itself that undermined its stability and integrity, or perhaps it was caused by the application of external factors to the lands immediately adjacent on the Speedy Muffler or Crystal Shoes properties.

[216] Regardless, it is plainly evident that the newly constructed sidewalk was not in any approximation of slope conformity with the existing sidewalk that abutted it, looked at from the perspective of the time of the accident in 2002. It was Mr. Pedersen's opinion that there was inadequate slope both by degree and direction. It sloped in the opposite direction, and as my reasons below address, regardless of its drainage attributes, its state relative to the older abutting sidewalk slabs left at least one trip ledge present that violated the City's own inspection and maintenance standard.

[217] I have spent many hours considering what caused the sidewalk to be in this state. Was the newer section of sidewalk actually designed and constructed to sit with its cross slope pointing away from the roadway, and the already present sources of drainage? I think not. While it is conceivable that some irresponsible or unqualified contractor retained by the City to construct the new three slab section of sidewalk might have caused that section to slope opposite to the rest of the sidewalk, in the absence of topographical features requiring it, this simply is not a probable explanation to any degree of cogency. Neither is it probable to conclude that the sidewalk heaved or rose up owing to freezing water that managed to find its way under the three new concrete slabs. The photographs show no rising up of either the roadside or the westerly edge of those three slabs. The roadside edge maintains an almost perfectly consistent height level with the sidewalk sections that abut it to the north and the south and the westerly edge is below the edge of the abutting slabs. There are no evident trip ledges at the easterly joint of the three sidewalk slabs where they meet the interlocking brick paving that form the boulevard sloping toward the curb.

[218] There is only one reasonably logical inference that can be drawn in the face of the evidence of the witnesses and the photographic evidence. That inference is that the new sidewalk section consisting of the three reverse sloped slabs was originally constructed to be in a more or less aligned cross slope to the sections to the north and south of it, but

that subsidence occurred causing the westerly edge of the section to drop. That subsidence caused that edge to drop to a point where the three slabs visually sloped in the opposite direction and left trip ledges at the adjoining northerly and southerly joint with the existing sidewalk, varying from 2 ½ inches at the north edge to 5/8ths inches at the south. Further, the evidence establishes and I find that such subsidence would only have occurred if the foundation for that section of the sidewalk had been improperly laid by whoever it was that constructed this new three slab section of sidewalk for the City of Burlington. To me, this is the only reasonable explanation for the state of the sidewalk.

[219] The question is whether it is reasonable to conclude on a balance of probabilities that the three slab section of sidewalk where the concrete slurry pooled, on which Marjory Cartner slipped and fell, was in a state of non-repair at the time of the accident based on these logical inferences drawn on the limited evidence presented. Whether the matter is looked at with the scientific precision that the City thinks should be used or as a simple matter of common sense based on the known and proven evidence, I find that the conclusion is inescapable that the three slab section was improperly designed or constructed. That improper construction caused the sidewalk to degenerate to the state it was in on November 8, 2002, an unequivocal state of non-repair according to the City's own policies.

[220] The City could provide no evidence that it was constructed in accordance with the applicable Ontario construction standard, no evidence regarding its construction at all. It could provide no evidence that it had records relating to who constructed that section of sidewalk or how they did it. Its own absence of records even prevents them from asserting that it was a third party contractor who improperly constructed it, rather than their own roads and sidewalks department. They simply do not know. Neither do they know why the sidewalk slopes away from the roadway contrary to the construction standard, and against the slope of the rest of the sidewalk, or why the state of that

sidewalk as a whole at the time of the accident was in non-compliance with their own standards for trip ledges and repair. Had they been able to advance such evidence there might have been an exculpatory explanation, but there was none present here.

[221] While I find that the sidewalk in question was improperly constructed and that the sidewalk was in a state of non-repair as a result of that improper construction, in the event that I have erred in this conclusion, I proceed in the next two sections to address whether the drainage characteristics of the sidewalk or the repairs and grinding actually done to the sidewalk caused it to be in a state of non-repair.

(c) Did the drainage from the sidewalk cause it to be in a state of non-repair?

[222] The plaintiff's claim that a condition of non-repair existed with respect to the sidewalk, owing to the failure of the concrete slurry that flowed off of the Wang's property to drain off the sidewalk. It is true and I have found in the reasons that follow that the pooling of the concrete slurry on the three reverse sloped slabs was a cause of the accident. This, however, does not necessarily or inferentially lead to a conclusion that the drainage condition of the sidewalk, and in particular the drainage condition of the three reverse sloped slabs, in and of itself constituted a condition of non-repair that offended the City's statutory obligations to maintain the sidewalk in a state of repair.

[223] Both Messrs. Pedersen and Malone agreed that there are no statutory requirements imposed on the municipality to provide drainage on a sidewalk. However, both also agreed, as did Mr. Powell, that a sidewalk that had a tendency to permit pooling or ponding or puddling of water was problematic, and it is evident to me that conclusion is necessarily correct. Pooling of water on a sidewalk can lead to icy surfaces in winter that can give rise to slips and falls. Pooling of water can also cause slips even when in liquid form, although slips would be unlikely with a large quantity of pooled water outside of

the cold seasons. The more likely result would be an annoying “foot-soaker”, but probably little more.

[224] However, I accept the City’s contention that no complaints, at least no complaints for which records continued to be maintained by the City, suggest that other pedestrians had experienced problems in this area of sidewalk owing to the pooling of water. It may be that complaints were received but records of such complaints not retained, as in the case of some of the other records relating to the sidewalk, but there was no evidence that drainage problems had been reported.

[225] It is difficult to conclude against that evidentiary lacuna that the drainage of water or pooling of water was a recurring problem here, and it is the drainage of water that is the litmus test. It is also difficult to accept the allegation of the plaintiff that the alleged drainage characteristics of this sidewalk could lead, in and of itself, to a finding that a condition of non-repair existed in the absence of evidence permitting a balance of factual probabilities to be assessed. There is simply no adequate evidentiary foundation to conclude that a situation of non-repair existed attributable solely to the alleged drainage characteristics of the site.

[226] Counsel for the City advances Justice Murray’s sensible decision in *Baldassare v. Peel (Regional Municipality)*, Superior Court of Justice (unreported), affirmed by the Court of Appeal, *Baldassare v. Peel (Regional Municipality)*, [2007] O.J. No. 3486, as authority for the proposition that the City has no obligation to intercept or interrupt rainwater which may fall on the municipality, and consequently no obligation to provide drainage. Here, however, it is not necessary to determine the impact that decision would have on the facts of this case because I am unable to determine whether the sidewalk generally provided drainage of water or did not. The expert evidence relating to slope towards the roadway and reverse slope towards the properties is not determinative on this

issue. No evidence advanced on this trial permits a conclusion to be drawn reasonably on a balance of probabilities whether the sidewalk provided adequate drainage of water – I emphasise, not concrete slurry with its obviously increased viscosity and necessarily different drainage characteristics, but simply water.

[227] Nevertheless, I agree with plaintiff's counsel that *Baldassare* was more concerned with the allocation of responsibilities as between regional governments than it was focussed on the issue of drainage. I also agree that the reported reasons of the Court of Appeal do not provide the insights into causation that counsel for the City suggested they did. If such insights were provided they can have been known to her only as a result of her participation in the argument of that appeal. In any event, given my conclusions on the absence of evidence here relating to drainage, there is no need to further consider the impact, if any, of the *Baldassare* decision on a municipality's obligations under the statute to assure drainage as part of the City's obligation to maintain its roads and sidewalks in a state of repair. I find no evidentiary basis present here to conclude that the alleged drainage attributes of the sidewalk, in and of itself caused this sidewalk to be in a condition of non-repair. This contention of the plaintiff is dismissed.

(d) Did the grinding repairs made by the City to the sidewalk create a state of non-repair?

[228] I turn now to the final alleged basis for the plaintiffs' assertion that the sidewalk was in a state of non-repair: that the grinding repairs undertaken by the City to remedy a perceived state of non-repair of the sidewalk nevertheless permitted a state of non-repair to continue to exist on the date of the accident.

[229] In *McKay v. Thunder Bay (City)*, [2000] O. J. No. 2853 (S.C.J.O.), the plaintiff sued for damages arising from a slip and fall on a sidewalk against the defendant city. The plaintiff slipped on the afternoon of a beautiful August day. She was wearing

running shoes. The sidewalk where she slipped had some spauling which caused its surface to be irregular.

[230] Justice Wright dismissed the plaintiff's action. He concluded that the City was not required to keep all its sidewalks perfectly level or free of imperfections. The sidewalk was not inherently dangerous. In deciding that the City should not be held liable, Justice Wright inquired as to whether there was a dangerous condition present for which the municipality could be held liable, or was it simply a case of the sidewalk not being perfectly smooth.

[231] In dismissing liability claims by the plaintiff against the defendants, the Justice concluded that the photographs that he had seen showed a sidewalk that held no traps. It just did not happen to be perfectly smooth. It was not inherently dangerous. Noting the admonishment of the court in *Hennessey v. Toronto*, 62 O.L.R. 541, that "pedestrians are not entitled to expect perfectly smooth sidewalks with so many miles of sidewalk to be kept in order," he concluded that the standard set out in *Hennessey* had been met and that the municipality could not be held liable.

[232] Unlike that case, however, in the present case the trip ledge that was present at the joint where the three reverse sloped slabs of sidewalk met the northern slab in front of Mr. Wang's property did hold a trap. It was plainly visible in the photographic exhibits. It had been specifically identified by the City as a trip ledge requiring repair. Even though its height was at or above the 2 ½ inch limit where the City's policy required that the slabs be replaced, they had not been replaced.

[233] Clearly the City became aware at some point of the state of non-repair of this area of sidewalk. They had to have become aware of the problem or else they would have had no reason to send out either a contractor or one of their own repair crews to attend at that

site and grind down the southerly edge of the north slab of sidewalk immediately in front of Crystal Shoes to try to eliminate the trip ledge. If there had been no trip ledge, there would have been no need to undertake remedial work, so obviously the existence of that hazard had come to the City's attention. It obviously had been reported to the City, either by one of its own sidewalk inspectors, or perhaps by a citizen or pedestrian. We can not know how it came to their attention, however, because the City retained few if any records – at least records that were produced at this trial – permitting this question to be answered.

[234] The City argues that any attempt to argue that the grinding in 1999 was improper and not in accordance with the City's policy should be discarded as unsupported by the evidence. They claim that it would be ironic for the Municipality to face a finding that in an attempt to remedy a condition of non-repair for pedestrians it created a condition of non-repair in the event that someone would deposit a substance on the sidewalk such as occurred in 2002. It says it was clearly not foreseeable that concrete slurry would be placed on the sidewalk and would impose much too high a duty on the municipality. First, while it may have attempted to remedy the condition of the sidewalk, it was a half-hearted attempt, with no explanation being available as to why the City did not complete the slabs or section replacement that was the standard of repair called for. Second, I agree that it may not have been foreseeable that concrete slurry in particular would find its way onto the sidewalk, but it certainly was foreseeable that in failing to repair the sidewalk to standard, the sidewalk would remain in a state of non-repair, and that continuing state of non-repair could cause injuries to arise, either on its own, or in combination with other factors.

[235] In grinding the edge of that northerly slab of sidewalk, the City failed to comply with its own trip hazard policy. A trip ledge of the height of that trip ledge required that the slabs of sidewalk be replaced. That is the standard of repair that the policy demanded,

but the City did not replace the sidewalk section. Instead, it undertook extensive grinding of the edge of the northerly sidewalk slab. In failing to comply with its own maintenance standard by grinding the sidewalk down rather than replacing it, the City failed to meet its statutory obligations. But even worse, in choosing to remedy the situation in this way, whether they knew it or not, they created a new problem.

[236] On a balance of probabilities, there is no reason to believe that before the grinding work was done, drainage of water or other liquids off the northerly slab in front of Crystal Shoes would not have flowed principally towards the roadway where the sewer drains were located. However, I find that the grinding work done by the City, in addition to leaving an impermissible height differential between the two slabs in totality, changed the drainage characteristics of that slab. The grinding was evidently extensive enough that the slope created by the grinding itself, a slope which can clearly be seen in the photographic exhibits, obviously changed the direction of the flow of drainage at that edge of that sidewalk slab away from the roadway and towards the three reverse sloped slabs of sidewalk that lay to the immediate south of it on the sidewalk. That changed flow of drainage, combined with the trapping characteristics of the three reverse sloped slabs, permitted the pooling of water or other liquids to occur on those three slabs.

[237] The plaintiff's note that the Supreme Court's decision in *Tock*, above, requires that a public body that undertakes repair work they are authorized to perform must do so in a manner that avoids the creation of some other hazard or nuisance. If it does not discharge its statutory obligation in a manner that adheres to its own policies or that avoids the creation of a nuisance, it will be found to be liable whether it is negligent or not. Here, regardless of whether the failure of the City to comply with its own policies and its inadequate repair of the sidewalk created a nuisance as a matter of law, I accept the submissions of the plaintiff that it knew or ought to have known that the remedial approach it took was inadequate. It knew or ought to have known that the remedial work

was not in conformity with its own standards and could affect drainage at this location on the sidewalk.

[238] It had to be evident to the persons who undertook the repair work that the creation of a slope on the northern edge of the three reverse sloped slabs would cause draining liquids to alter their course. Instead of continuing to flow towards the drainage sewers at the edge of the roadway, the slope caused by the grinding would inevitably cause liquids meeting that slope to flow down the slope in a southerly direction towards the three reverse sloped slabs of sidewalk. That, combined with the potential water retaining attributes of those three slabs attributable to their reverse slope away from the roadway, was necessarily going to result in a change to whatever the drainage had been and the possibility of pooling. Whether the manner in which the City undertook this repair created a nuisance or whether it amounted to negligence is of little consequence here – what is beyond doubt is that on no reasonable basis could this area of sidewalk have been considered to have been in a state of “repair.” It was not in a state of repair before the City or its agents undertook the repair work and it was not in a state of repair after they performed the repair work. The inadequacy of the work performed caused it to remain in a state of disrepair after that work was completed. In light of that continuing state of non-repair, I reject the notion that the City can be allowed to say that it inadequately discharged its statutory duty but ought nevertheless to be allowed to escape the consequence of that on grounds of unforeseeability.

[239] I find that the sidewalk where Marjory Cartner fell on November 8, 2002 was not in the state of repair at that time that the City of Burlington was statutorily obliged to maintain, under either the *Municipal Act*, or under its own policies.

4) Was the state of non-repair a cause of Mrs. Cartner’s accident?

[240] Referring to the *McMaster* decision, the City argued that the plaintiff must show not only non-repair, but also that if the condition had not existed the accident would not have occurred. It was defence counsel's position that such a situation is not present in this case. She argued that there was no one that testified that if the sidewalk had not been sloped, the accident would not have occurred. She said that Mr. Pederson, the plaintiff's expert engineer, could have tried to reconstruct the sidewalk to show that but for the sloped sidewalk, the incident would not have occurred, but argued that he failed to do so. The City asserted that there was no need for it to raise the statutory defences available to it without proof of a causal relationship between those elements and Marjory Cartner's fall.

[241] The City asserted that the evidence clearly established that the slurry came from Mr. Wang's property at Crystal Shoes. I agree and have so found. The City says that the slope of Mr. Wang's property caused the slurry to flow towards the street. This is also a finding I have made based on the evidence of Mr. Cartner and Mr. Bretton and the photographic evidence. It was clear from those photographs that the slurry flowed from the area of the work in front of Crystal Shoes to the area of the fall.

[242] Counsel for the City emphasized that Mrs. Cartner knew this walkway and had never fallen before, and that none of the business owners in the properties adjacent to that area of sidewalk had called the City to complain about the condition of the sidewalk. On that last point, I must confess to having found the submission unpersuasive given the City's complete inability to produce any records of any significance with respect to the state of this sidewalk, its history, construction or maintenance. Perhaps there had never been any complaints about this section of sidewalk, but the unreliability of the City's recordkeeping with respect to other aspects of the sidewalk, must cast at least some uncertainty on the question of whether complaints were ever received or acted upon.

[243] Mrs. Cartner said it was the presence of the "mud" or "slurry" that caused her to fall. Mr. Pederson said that the slurry caused Mrs. Cartner to fall. In her efforts to argue against liability, the City argued that on her own evidence, "but for" the existence of the slurry, the plaintiff would not have fallen. In the absence of the slurry, the City says the sidewalk was not in a condition of non-repair, but this contention has been rejected on two counts. The sidewalk was in a state of non-repair. The state of non-repair on its own, however, is not enough to cause liability to be visited on the City. Causation must be established between and linking that state of non-repair and the slip and fall accident that gave rise to Mrs. Cartner's injuries.

[244] First, it is useful to remember that the state of non-repair of the sidewalk does not need to be the sole cause of Mrs. Cartner's accident in order for liability to arise against the City. The evidentiary principles enunciated in *Athey* and *Snell*, and that were affirmed by the Court in *Resurface*, all above, establish that it is enough if that state of non-repair was a cause. The evidentiary standard is on a balance of probabilities, not beyond a reasonable doubt. Proof that the state of non-repair that existed was "a cause" of the accident does not need to be established here with the level of scientific precision and exactitude sought by the City. The plaintiffs here need not prove that the state of non-repair of the sidewalk was *the cause* – they need only show that it was *a cause*. The determination should be made as a practical question of fact best answered by the application of ordinary common sense to the facts that have been proven. Inferences of causation may be drawn from the evidence without positive scientific proof.

[245] In this case the evidence made clear, and I find that concrete slurry flowing off of the Crystal Shoes property sometime in the 24 hour period preceding the accident reached the City of Burlington sidewalk and rather than continuing to drain across that northerly sidewalk slab towards the roadway, changed its direction of flow. It flowed down the grade created by the City's inadequate trip ledge repairs onto the three reverse

sloped slabs that abutted that northern slab. And there, apart from a minimal amount of drainage that occurred in a south-easterly direction towards the roadway, the slurry pooled and remained until the next morning, apparently largely in liquid form, retained or trapped by the edge of the north slab and the grassy hill on the Speedy Muffler property to the east. The photographs taken two hours after the accident show that there had been some drainage towards the street, and there appeared as well to have been some drying up or evaporation of the slurry, but enough of it remained trapped in that location in semi-liquid form to create the pooled slippery surface that precipitated Marjory Cartner's fall at 7:30 the next morning. There was still semi-liquid slurry evident in the photographs taken two hours after the accident occurred.

[246] The City argued that there was no evidence led to support the conclusion that but for the sloped slabs there would have been no concrete slurry on the sidewalk and the plaintiff would not have fallen. In fact it suggests that common sense should cause one to reach the opposite conclusion. Counsel says if the concrete slabs had been sloped towards the roadway rather than the property there would likely have been more, not less slurry on the sidewalk when it was washed down the Crystal Shoes driveway. While I respect the tenacity with which counsel for the City argued against it being found liable, this is a line of argument that must fail. It seeks simply to raise further scientific speculations when there is no evidence to support them or to permit those speculative questions to be answered, and when the answers to those questions are not relevant to this enquiry.

[247] It may be that there would have been more slurry on the sidewalk if the sidewalk slabs had sloped towards the street rather than away from it. It may be that Mrs. Cartner would have slipped and fallen, or not, even if the slurry had not changed its direction of flow owing to the ground down trip ledge, but instead carried on in an easterly direction towards the roadway. It may equally be that the flow of the slurry towards the street would have been spread more thinly across a larger area that might have enhanced the

likelihood that the slurry would have dried up by 7:30 am on November 8, 2002, or that its water component would have evaporated more quickly. These are interesting but ultimately irrelevant conjectures and speculations.

[248] The reason is that if the sidewalk had not sloped away from the roadway rather than towards it, or if the trip ledge had been properly repaired, absent some other feature, the sidewalk would not likely have been in a state of non-repair. An accident caused by pooled concrete slurry on a sidewalk that is in a state of repair does not engage the liability of the City, or put the onus on it to defend itself, assuming it could not have known of the presence of the hazard.

[249] What is certain and different here, however, is that the sidewalk was in a state of non-repair, albeit for causes not associated with the slurry itself. The two distinct aspects of that state of non-repair were its improper and faulty design and construction and the faulty and incomplete repair work performed to that area of sidewalk by the City. The presence of that double-barrelled state of non-repair left that area of the sidewalk in a state where the evidence showed that liquids would have a tendency to pool and accumulate. Both the plaintiff's and the City's experts agreed that an area of sidewalk whose physical situation tended to permit pooling, or ponding, or puddling of liquids was a problem. The Director of the City's department responsible for the maintenance of the roads and sidewalks agreed that pooling of liquids on the sidewalk is a problem.

[250] I do not need to determine whether the slurry would have been present if the sidewalk had not been in a state of non-repair. I do not need to determine whether the slurry would have been present if the trapping characteristics of the three slab reverse sloped section of sidewalk had been properly designed and constructed. I do not need to determine whether the slurry would have been present if the City had repaired the trip ledge in compliance with its own policies. The simple observable fact is that these

conditions of non-repair, conditions that the City knew existed, created a sidewalk condition that permitted the concrete slurry to become trapped when it pooled on the sidewalk. It was the accumulation of that slurry in that location that was caused by the condition of non-repair of the sidewalk that caused Mrs. Cartner to slip and fall. While I accept the proposition that the state of repair of the sidewalk was not “the” cause of her fall, it was clearly a cause, and as such, the City is *prima facie* liable to Mrs. Cartner for her injuries, along with Feng Feng Wang and Ying Jai Huang, unless the statutory defences accorded to it under the *Municipal Act* relieve it of liability.

5) Did the City know or could it have reasonably been expected to know about the state of repair of the sidewalk or did the City take reasonable steps to prevent the state of disrepair from arising?

[251] Under the *Municipal Act*, the City may still avoid liability if it can make out one of the two lines of defence that are granted to it statutorily, notwithstanding my findings that the state of non-repair on the day of the accident was a cause of Marjory Cartner’s slip and fall and the injuries occasioned by it. These are, first, if it did not know and could not reasonably have been expected to know about the state of repair of the sidewalk and second, if it took reasonable steps to prevent the state of non-repair from arising.

[252] On the first defence, as discussed above, I accept that the city could not reasonably have known of the presence of concrete slurry on its sidewalk in the 24 hour period preceding Marjory Cartner’s fall. However, equally, for the reasons noted above, I found that the City necessarily knew about the state of non-repair of the sidewalk where Mrs. Cartner fell. It knew that the three slab section of more newly constructed sidewalk sloped away from the roadway towards the adjacent properties, that its slope did not conform with the general slope configuration of the rest of the sidewalk, and that there was a trip ledge of sufficient magnitude at the north end of the three slab section that its

own maintenance policy called for replacement of the sidewalk. The first permitted ground of defence does not aid the City and cannot assist it in avoiding liability.

[253] Turning to the second ground, in considering the municipality's conduct in a case such as this where a statutory cause of action is asserted for injuries caused by non-repair, the reasonableness of its steps to inspect and maintain its sidewalks in this case is of critical importance. It is to be evaluated in much the same way as would be the case in a negligence action. An important difference, once a finding of non-repair has been made, is that the onus rests upon the municipality to disprove negligence on its part. Nevertheless, some legal writers argue that reference to a municipality having to rebut the "presumption" imposes too high a burden upon the municipality. They say a municipality should be found to have discharged its evidentiary burden that it took reasonable measures to keep the sidewalk in repair simply by establishing that it had a reasonable system of maintenance and inspection, notwithstanding that a condition of non-repair existed at the time of the accident: see *The Law of Municipal Liability in Canada*, above, paragraph 2.161 and cases cited there.

[254] In *Blanquiere*, as in this case, the municipal defendant was the City of Burlington. Judge Valin observed in that case that the City had in place a maintenance service level policy for trip ledge repair. This is the same policy applicable with respect to the City of Burlington in this case. Under that policy, Justice Valin found in that case the City of Burlington inspected one-third of its sidewalks every three years and confirmed that inspections are conducted in the spring months of each year visually by foot patrol. Of particular interest, says the City, is his comment at paragraph 18:

The defendant has 700 km of sidewalk to maintain. The plaintiff did not call any evidence to attack or question the reasonableness of the defendant's policy, either with respect to the frequency of inspections or with respect to the tolerable difference in elevation of sidewalk slabs, which, in the view of the municipality, did not require maintenance or repair. In my view, the defendant had in place a

reasonable policy of sidewalk repair. Given the quantity of sidewalks it had to maintain, the defendant reasonably balanced financial and physical considerations in formulating the policy of inspecting one third of its sidewalks every three years. I hasten to add that, even if the policy of inspecting a sidewalk every three years was considered not to be reasonable, there was no causal connection between the policy and a defect in the sidewalk because it had been inspected in April 1997 in any event. In the circumstances, I find that s. 284 (1.3) of the *Act* also provides a complete defence to the defendants.

On this basis, Justice Valin found in that case that the defendant could not be held liable in the circumstances of that case.

[255] Here, unlike in *Blanquiere*, the plaintiff did call evidence to challenge not only the reasonableness of the policy of the City, but more importantly whether the City was actually complying with its own policies generally, and in particular relative to the sidewalk location in Burlington where this accident occurred. Accordingly, whether the City can avail itself of the second ground of defence must depend whether its inspection, maintenance and repair policies were reasonable, and whether it actually took the measures prescribed in those policies as reasonable steps to prevent this sidewalk from falling into a state of non-repair.

(a) Inspection policy:

[256] The existence of a sidewalk inspection and maintenance policy alone will go some distance towards satisfying the requirement that the municipality take reasonable steps to avoid permitting its sidewalks to fall into a state of non-repair that violates its *Municipal Act* obligations. However, any such policy will be meaningless if it is not actually fully and faithfully implemented and adhered to. In this case, the only policy that the City has dealing with the repair and maintenance of its sidewalks is the two-page “Trip Ledge Repair” policy, “Revised January, 1998”, that was introduced at trial as Exhibit 35.

[257] The stated objective of the policy is to provide a safe and hazard free sidewalk and to minimize personal injury. It addresses the removal of trip ledges on sidewalks utilizing a grinder and temporary repairs by using hot or cold mix asphalt. It requires that all sidewalks “shall” be inspected every three years. The program of repairs of trip ledges is annually established based on the inspection and prioritized for grindings. Sidewalk sections that have settled or heaved between 15 and 40 millimeters shall be ground down as soon as possible or temporarily ramped using hot or cold mix. Sidewalk slabs that are heaved or depressed by less than 15 millimeters are not to be programmed for grinding. Most importantly here, the policy stipulates that “sidewalks” (not slabs, I would emphasize) that cannot be repaired by grinding, which would include those that have settled or heaved more than 40 millimeters, “shall be scheduled for replacement.”

[258] What is most interesting about this policy of the City is not what it contains, but what it does not. I fully accept the position of the plaintiffs that it is not, on its face, a true sidewalk inspection policy – it is a trip ledge repair policy. That is the only maintenance or repair aspect of the condition of the City’s sidewalks that the policy addresses. The evidence at this trial made clear that there was no inspection system undertaken by the City with respect to the slope or grade of the sidewalks, or with respect to the drainage of sidewalks. The policy does not make any mention of slope or grade or drainage. The evidence of Mr. Powell of the City’s roads department was that those are not issues that the inspector would be looking for in the course of inspecting all sidewalks every three years.

[259] Even if it is true that the City does not have a statutory obligation under the *Municipal Act* to guarantee drainage of water off of its sidewalks, the evidence at this trial of Mr. Pedersen, Mr. Malone and Mr. Powell all confirmed that pooling or ponding of water on City sidewalks is a problem from a safety perspective and ought not to be allowed to occur to the best of the City’s ability. Nevertheless, as noted, these are not

issues that are embraced within the City's policy, and they are not issues that the inspector generally focused on in the course of performing inspections of the sidewalks every three years.

[260] I agree with the plaintiffs that the policy of inspection of the City of Burlington, as laudable as it may have been with respect to the identification and repair of trip ledges, was inadequate as it read at the time of Marjory Cartner's accident and is not a true policy of inspection of the state of the sidewalks as a whole. It does not address issues of slope, grade or drainage. These are issues which the evidence at this trial made clear can pose safety issues for pedestrians, and therefore ought to be embraced within the City's policy. On this basis, I find that the City's policy of inspection was inadequate for those issues, and therefore could not in and of itself constitute a reasonable step taken by the City to avoid defaults on its sidewalks from arising, and therefore does not afford the City a defence from liability in this case. However, in the event I have erred in reaching this conclusion, I will now proceed to consider whether the City actually complied with its own policy, limited as it was, in the circumstances of this case. As noted, even if the policy is adequate, in my opinion it can not afford the City a defence from liability if the City cannot show that it was actually followed in practice in the circumstances of this case, by inspectors who were properly trained and equipped to do the job.

(b) Training, inspection and repair history and findings:

[261] To my mind, the adequacy of the City's sidewalk inspection and maintenance efforts, at least with respect to the sidewalk that was the focus of this trial, must be assessed having regard to the evidence heard at this trial on the training it gave to its sidewalk inspector, on the evidence of the actual inspection made and on the evidence of the repairs undertaken by the City on this sidewalk. On all three of these aspects of its inspection and repair policy, I find the City's efforts fail to meet the standard that it must

meet to be entitled to the second ground of defence available to it under the *Municipal Act*. The City could produce no records of any consequence beyond those few it permitted to be introduced at this trial that would have assisted it to show the existence of reasonable efforts to prevent the default from arising, the onus it had to meet to be entitled to avail itself of the defence. On all three of these fronts, at least with respect to this particular sidewalk, and in the absence of more fulsome evidence to establish that what happened at this location was an unfortunate aberration in the application of what were otherwise reasonable and sound inspection and maintenance efforts applicable elsewhere in the municipality, I find that the City has failed to discharge the onus on it.

[262] Looking first at the “training” given to Ms. Czvetkovic for the important inspection job she was to perform, it was cursory at best. There was no written training manual of any kind. The only written training appears to have been to permit Ms. Czvetkovic to read the City’s trip ledge inspection policy, and she herself acknowledged she had read only half of it, even though it was only two pages in length. Her training appears to have amounted to little more than walking areas of sidewalk with Chris Spiedini for an hour or so as he pointed out to her some samples of what to keep a lookout for. It did not include issues relating to either slope or drainage. It focused almost exclusively on trip ledges.

[263] In her second year of inspecting the sidewalks, the summer of 2002 that preceded Mrs. Cartner’s accident, she did not receive any “refresher” training, and she testified that after the initial session with Mr. Spiedini, she never again received any follow up from him or anyone else advising either of any updates to the policy or of any expansion or refinement of its content to address other sidewalk flaw issues. Surely, the duty and standard of care that the City must meet to show that it took reasonable steps to inspect and maintain its sidewalks demands more than this *de minimis* of “training” for its sidewalk inspectors. I find that the City failed to adequately train the inspector in a

manner that would permit it to discharge the onus on it to meet the duty and standard of care that is imposed upon it in that respect.

[264] Turning to the actual inspection itself, here again the City has failed to discharge the onus that rests upon it to show on a balance of probabilities that the sidewalk on Guelph Line in front of Crystal Shoes and Speedy Muffler was inspected in the summer of 2002. Ms. Czvetkovic was herself uncertain whether she had inspected the area. She said she walked up the east side of Guelph Line and said she would have walked back south on the west side, but she had no independent recollection of having walked past the accident location, even after careful study of the photographs showing the businesses along the west side near that spot. The three entries on her inspection sheet where she made note of sidewalk deficiencies are all located south of the accident location, on the south side of Prospect Street. There are no notations respecting the sidewalk north of Prospect Street where Crystal Shoes is located. Her only ability to resolve this locational issue was to testify that if 610 Guelph Line or the carpet store was north of Prospect Street, she must have walked past 764 Guelph Line where Crystal Shoes was located. Her two second-last notations that day were for the carpet store and 610 Guelph Line, both properties being located in the next block south of Prospect Street. However, in his evidence, Mr. Powell testified that the carpet and home store and 610 Guelph Line, for which Christina made these entries, are both located south of Prospect Street.

[265] More importantly, Christina's last entry that day is for flaws she observed at the driveway entrance to the Plaza on the east side of Guelph Line where Denninger's and Canada Trust were located. As well, she noted for all of the last three entries that it was raining and that she had not painted markings on the street because the paint would not adhere to wet sidewalks. Interestingly, if anything, to my mind this last notation contradicts her testimony that she first walked up the east side and back down the west side. The only logical inference from her own notations on the Sidewalk Inspection sheet

was that she actually walked north away from Lake Ontario on the west side and then crossed over to the east side at Prospect Street, the street immediately south of the location of Speedy Muffler and Crystal Shoes and headed back south towards the lake from there. Moreover, Ms. Czvetkovic acknowledged in her evidence that if it was raining and the paint would not adhere to the sidewalks, there was nothing for her to do but call it a day and, at least theoretically, return to the same site to complete that sidewalk inspection on another day when better weather conditions prevailed. There was no evidence that she did.

[266] The plaintiffs ask that an adverse inference be drawn against the City for the failure of Chris Spiedini to testify but I find no need to draw that negative inference. There is more than adequate evidence on this issue to show that the City has not satisfied the onus of proof that rests upon it on this issue. It was incumbent on the City to be in a position where it could advance evidence that was supportive of what it claimed were the facts relating to the inspection of this sidewalk in 2002. The last time it had been inspected was in 1999, the inspection that gave rise to the inadequate repairs to which I have previously referred, and which I will visit again in the next following paragraphs. The City could not show with any reliability or credibility that the sidewalk in front of 764 Guelph Line was actually inspected in the summer of 2002, only months before Marjory Cartner's accident, as its own policy required. Moreover, it either failed to retain the maps that its sidewalk inspector used to record the areas of street that had been covered in an annual inspection, and that if they had been retained could have shown that the area had actually been inspected, or not. If it did retain those maps, it failed to produce them. While its failure to adduce cogent and reliable evidence that it did inspect this sidewalk in the summer of 2002 is enough to conclude that it did not, had I had any doubt on the issue, I would have drawn an adverse inference against the City on this point

owing to its failure either to retain or to produce the maps that could have assisted the court greatly in knowing whether this sidewalk was inspected.

[267] For these reasons, not only do I find that the City has failed to meet the onus on it to meet the requirements of the statutory defence that is provided to it, but I also find on a balance of probabilities that the sidewalk in front of Crystal Shoes was not inspected every three years in accordance with the City's inspection and maintenance policy, regardless of whether it may have complied with that policy elsewhere in the municipality. While this in and of itself might arguably be regarded as a foundation to make a finding of non-repair to this sidewalk, there is no need to do so in light of the other extensive evidence showing non-repair and absence of reasonable efforts to prevent that default from arising.

[268] Finally, there is the history of the repairs undertaken to this sidewalk. A great deal has been said on this subject in the preceding paragraphs. I will return to those points here only briefly. The 1999 inspection revealed a trip ledge between the northern slab of sidewalk immediately in front of Crystal Shoes and the three reverse sloped slabs that lay to the south of it. The height of that trip ledge called for the replacement of the sidewalk under the City's policy, rather than grinding. In choosing to grind that edge and to create a beveled edge between those two slabs rather than replacing as its inspection and repair policy mandated, the City failed to meet its statutory obligation to take reasonable steps to maintain the sidewalk in a state of repair, and in this case to prevent the evident prior state of non-repair from continuing. Moreover, the City knew or ought to have known, apart from whether it has any obligation to ensure drainage on its sidewalks, that the creation of a beveled slope of that magnitude between those two sections of sidewalk would create a change in the direction of drainage from straight down the slope towards the roadway to a southerly direction, where the three reverse sloped slabs had the potential, solely by reason of their physical situation, to retain such fluids, causing

ponding or puddling. Both experts and the City's own employee agreed this was problematic if areas of the sidewalk permitted the ponding or puddling of liquids.

[269] Against this factual background, the question can fairly be asked how repairs undertaken in this way could possibly meet the onus on the City to take reasonable steps to prevent a state of non-repair from arising or from continuing to exist. The answer is they can not. If there is to be any meaning given to the City's obligation to maintain its sidewalks in a reasonable state of repair, and to take reasonable steps to prevent a state of default from arising or continuing, it is self-evident that inadequate actions such as those taken by the City in this case can not possibly satisfy the onus that rests upon it if it is to enjoy the benefit of the statutory defence afforded to it under the *Municipal Act*. As noted above, where a municipality determines that a section of roadway or sidewalk is in a state of non-repair and proceeds to fix it, it cannot be unreasonable for residents to expect that the remedial work will actually repair the defect identified by the municipality, in accordance with its policies, and not leave the sidewalk or roadway in a continuing state of non-repair in spite of the remedial work. I find on each of the three grounds discussed here, the City of Burlington has failed to meet the onus that rests on it to show that it took reasonable steps to prevent the state of default from arising or continuing.

6) Findings with respect to liability of the City of Burlington:

[270] For the preceding reasons, I find that the sidewalk where Marjory Cartner fell was in a state of non-repair within the meaning of the *Municipal Act* at the time of the accident and that the existence of that state of non-repair was a cause of Mrs. Cartner's slip and fall and the serious injuries she sustained in that fall. Moreover, I find that the City has not discharged the onus on it to make out the defences available to it under the statute. As such, the City of Burlington is liable to Mrs. Cartner for the injuries she sustained in the slip and fall accident that occurred on its sidewalk on November 8, 2002.

Allocation of Liability

[271] As all defendants have been found liable for the damages suffered by the plaintiffs, it remains to allocate the degree to which each of them is to be held responsible for Mr. Cartner's damages. In section 1 of the *Negligence Act*, it is stipulated that where damages have been caused or contributed to by the fault or neglect of two or more persons, the Court is to determine the degree to which each person is at fault or negligent. With respect to the plaintiffs, such tortfeasors are jointly and severally liable to the persons suffering the loss or damage, but as between them, in the absence of any contract, they are required to make contribution to and indemnify each other in the degree to which they are respectively found to be at fault.

[272] In the event that I am unable to determine to respective degree of liability of each defendant, section 4 of the statute provides for each of the parties to be deemed to be equally at fault and for liability to be apportioned equally. That rule should only apply, however, where the circumstances of the case make it impossible or impracticable to determine the respective degrees of fault of the parties, typically on the basis that the available evidence does not permit the extent to which liability should be imposed on them as multiple tortfeasors to be determined. The obvious example where this would apply would be in a case of, say, a head on collision where it could not be determined which of two oncoming vehicles strayed across a centre line of a highway and collided with the other.

[273] Here, I do not find myself faced with that dilemma or impracticality. To my mind, the principal cause of Marjory Cartner's accident was the fault of Feng Feng Wang and Ying Jai Huang in negligently creating the nuisance that arose when they permitted concrete slurry to escape from their property and to pool or accumulate on the adjacent sidewalk of the City of Burlington. However, the City of Burlington must also bear

liability for having permitted its sidewalk to be in a state of non-repair. Even though it could not reasonably have known about the presence of the slurry, it knew or certainly ought to have known of the state of non-repair that sidewalk was in at the time. As I have noted, the very fact that it purported to make repairs at that location but failed in doing so to comply with its own policy, barebones as it was, shows that it was aware of the sidewalk problem. It was the characteristics of the sidewalk that were created by that state of non-repair that caused the concrete slurry that escaped from the Crystal Shoes Property to pool on the sidewalk, thus leaving it present to be slipped on by Marjory Cartner on the morning of November 8, 2002.

[274] I must acknowledge here that it was only the confluence of this extraordinary set of circumstances at this particular location on the date of the accident that caused Marjory Cartner's fall. While I have found that the City failed to abide by its own sidewalk maintenance program in permitting the state of non-repair to continued un-remedied, there had been no other complaints about the state of that sidewalk, at least that are known today having regard to the apparent poor state of the City's recordkeeping with respect to its sidewalks, and there are no other known incidents where pedestrians had fallen (again subject to the same qualification). As such, it would be inappropriate to allocate liability to the City out of proportion to its contribution to the occurrence of the tort. In all the circumstances of the case, I have concluded that a fair and reasonable apportionment should see the City bear liability to the extent of 20% and the defendants Feng Feng Wang and Ying Jai Huang should bear liability to the extent of 80% of the damages awarded.

Disposition

[275] The plaintiffs shall succeed in their claims against both sets of defendants, jointly and severally, on the basis that damages are awarded to Marjory Cartner in the amount of

\$120,000, exclusive of interest. David Cartner shall receive an award of \$20,000 for his *Family Law Act* claim, exclusive of interest. Marjory Cartner shall receive special damages for loss of past and future income earning capacity in the amount of \$171,000 exclusive of interest. Pre and post judgment interest shall be payable, as appropriate, on the foregoing amounts. An award shall be made in respect of the OHIP subrogated claim of \$19,064.01, together with pre and post judgment interest only on the past loss component of \$14,064.01 and costs with respect thereto.

[276] As the plaintiffs have succeeded fully in their claims, they are entitled to their costs on a partial indemnity basis. If counsel cannot agree on costs amongst themselves, or if they require the Court's assistance to calculate the various interest amounts on the sums awarded, they may schedule an appointment before me in Milton on or after September 7, 2008 to speak to the matter.

M.G.J. Quigley J.

Released: July 29, 2008

COURT FILE NO.: 308/03
DATE: 20080729

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

MARJORY ARLENE CARTNER and DAVID
CARTNER

Plaintiffs

--and --

THE CORPORATION OF THE CITY OF
BURLINGTON, FENG FENG WANG and
YING JIA HUANG

Defendants

REASONS FOR JUDGMENT

M.G.J. Quigley J.

Released: July 29, 2008